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Loudoun County Board of Supervisors, Public Hearing, Wednesday, July 15, 2026

Date	Wednesday, July 15, 2026
Place	Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length	5h 30m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8213>
 - Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8213>
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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:10:07] OK. Am I on? Yes, I'm on. Yes, I'm on. OK. Well, good evening, supervisors. Good evening, staff, and good evening, Loudoun. I'm going to call to order the July 15, 2026, Loudoun County Board of Supervisors Public Hearing.

[00:10:27] This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecall mode. If you need a headset, we have those available as well. Please see the clerk to request one. Would everybody please join me in the Pledge of Allegiance?

[00:10:43] As a reminder, if you are a member of the public and you're addressing the board this evening, you may only sign up to speak on items that are on the agenda that are advertised for this public hearing. Due to the broadcast delay, any member of the public who are not in the boardroom

[00:11:22] wishing to address the boards on items one, two, three, and five, which are on the consolidated agenda, please call the number that's scrolling across the screen at this time. Supervisors, just as an FYI, we thought there was going to be a speaker on item one, and so we took it off the consolidated agenda. As it turns out, there's not a speaker on item one, and so we put it back on the consolidated agenda. If you signed up to speak, you will be allotted at two minutes. If you're in the boardroom, I'm going to ask that when your name is called, you come to the podium closest to you and state your name for the record. The timer on the podium

[00:11:59] will indicate your remaining time. When your time is expired, please yield the floor to the next speaker. If you are providing comments via phone, I'm going to ask that you keep your own time because if I stop you while you're talking to say like, you know, you're one minute, 30 seconds, it messes up your flow. And so people get, so I don't want to do that. So just time yourself and when you get to two minutes i i will stop you at that point um when taking items for public input i would first ask if there's anyone in the boardroom wishing to speak then i go to i will go to the moderator and ask if they're only speaker if there are any speakers online please note that there

[00:12:37] there is a slight delay between the broadcast and the boardroom right now i want to check to see um andy can you hear me yes madam chair loud and clear wonderful pursuant to uh thank you andy And the pursuant to Venn Jr. Code section 2.2-7, nope, 2.2-3708.3, and the board's rules of order, Supervisor Brixman requested to participate in this meeting by electronic communication.

[00:13:06] A physical quorum of the board of supervisors is present in the boardroom, and the board has made arrangements for the Supervisor Brixman to be heard by all persons in the boardroom. She made this request within the required time frame, and the county attorney determined that a request meets the qualifications to participate remotely.

[00:13:23] The board will record in its minutes that Supervisor Brixman participated from her home due to personal reasons. Supervisor Brixman, can you hear me? Yes, Madam Chair, I can. Thank you. Thank you.

[00:13:40] Mr. Letourneau is making his way in. He'll be here a little late, but he will be here hopefully by 6.30. He's coming from D.C., so we all know how that traffic could be. So we're going to do an adoption of the Consolidated Agenda items first.

[00:13:56] Supervisors, if you have an item on the Consolidated Agenda, would you please pull that out right now from your package? All right, the Consolidated Agenda items, remember, we have put item one back on it, The resolution approving the public use and necessity of acquiring certain real property and authorizing the acquisition of eminent domain from Farmware Road, Smith Switch to Ashburn Road.

[00:14:23] That is in the Ashburn and Broad Run District. I will go to either one of those supervisors for a motion. Number two, proposed conveyance of county property easements and performance agreements and guarantees located within the 2025, I'm sorry, located within the 2025, that's not great language, I'll change that next time, annexation area, that is Compass Creek, that's in the Leesburg District.

[00:14:53] Number three, proposed ordinance to authorize removal of structures that might endanger public health or safety at 20701 Riptide Square, that's in the Algonquian District. Number five, Leji 2025-0063, Loudon School for the Advanced Studies, ZMAP 2025-0019, ZCPA-2025, 2025-0009, Special Exception 2025-0149, and Special Exception 2025-0150.

[00:15:29] That is also in the Algonquian District. Madam Chair. Yes. I was told that there is a speaker for item one. Okay, that's right. I like this. Okay, that's cool.

[00:15:47] If you're here to speak on item one, which is resolution approving the public use and necessity of acquiring certain roads, properties, authorization, the acquisition, acquisition, not accusation, acquisition by eminent domain for Farmer Road, Smith Switch to Ashburn Road.

[00:16:04] Would you raise your hand, please? All right, I'm going to keep that unconsolidated. okay thank you madam chair yes um i would like to make a motion to add number nine to the consolidated agenda i sent an email about doing that earlier this week we don't have any speakers um we had a robust conversation about it before we sent it to public hearing and there's also already been an article in the paper about it so i think that since we don't have speakers it would be appropriate to have it on the consolidated is that your district well it's

[00:16:39] finance item it's capital intensity factor yes mr mr letourneau has asked to keep that off the consolidated so i'm going to grant i'm going to i'm going to do that for him he's out he he has said to me today um right before i got in the day as his staff came to me and said they like he'd like to keep that off of the consent of off of the consolidated agenda so it is normal for me to to to say yes to those requests so we're going to keep that off okay all right then those are all the the board will hear the following items as a consolidated item reminder they are being consolidated because there are no outstanding issues staff has recommended approval and waive

[00:17:18] the presentation time and no public speakers registered in advance to speak so let's first go to item number one for the consolidated agenda which is the one i just talked about um mr mr turner or miss glass would you like to make a motion yes madam chair i move that the board of of Supervisors forward the resolution approving the public use and necessity of acquiring certain real property interests and authorizing the acquisition thereof by eminent domain for the Farmwell Road, Smith-Switch Road to Ashburn Road project to the September 15, 2026 Board of

[00:17:56] Supervisors Business Meeting for Action. Motion is made and seconded by the Attorney. Discussion on the motion. Ms. Glass. Yes, thank you, Madam Chair. I know certain communities and individuals in my district have still been engaging with staff to reach agreements about the necessary land And easements we need for this project before the board authorizes the use of eminent domain I want to make sure we have allowed those for those agreements to be flushed out My motion allows for exactly two months before we revisit this topic I'm confident we can reach equitable agreements for everyone involved the turn lane and pedestrian

[00:18:33] improvements on this project are so important to the area and my continued support for safe pedestrian and multimodal options. I want to thank staff for your work on this and for the engagement from the affected property owners. Thank you. Mr. Turner? Thank you, Madam Chair. I associate myself with Supervisor Glass's comments. Same comments exactly for the residents along that stretch of road that are in the Ashburn District. We'd like to continue to engage them to make sure that before we do eminent domain, we've kind of exhausted all our possibilities.

[00:19:08] Thank you. Thank you. Will you tell me one more time the date of the... Was you sending it to the... September 15th. 15th or... 15th. The 15th of September. Okay, thank you. We're good? All right. All in favor, please say aye. Aye. Any opposed? Aye.

[00:19:24] That motion will pass 801. Mr. Turner being off the dais. I will go to Ms. Umstead for item number two. Very well, Madam Chair, thank you. Item two is the proposed conveyance of county property easements and performance agreements and guarantees located within the 2025 town of Leesburg annexation area, Compass Creek.

[00:19:49] I move that the Board of Supervisors approve motion 2B for the approval of the conveyances of the county's interest in any easements and performance agreements as provided in the July 15th 2026

public hearing item number two staff report uh i will second that i will second that discussion on that motion discussion then miss brixman anybody discussion

[00:20:21] on that motion no just give me a sec this is not being moved to any other this is this being moved is this item being moved to another date this is this is okay all right all right um thank - Thank you.

[00:20:39] On field, please say aye. - Aye. - Aye. - Any opposed? That motion will pass 801. Number three is the Algonquian District, Ms. Bricksman. - Thank you. I move that the Board of Supervisors approve motion 2B for the adoption of an ordinance for removal of a fire damaged structure at 20701 Riptide Square, Sterling as provided in the July 15th, 2020 public hearing Item number three, staff report.

[00:21:09] Second discussion on the motion. Thank you. I think most of us are aware of the tragic incident that happened. Gosh, maybe it was around Halloween.

[00:21:26] I can't even remember, last year. But there was an arson case and three townhomes burned down. And unfortunately, one of our neighbors lost her life in that tragic incident.

[00:21:42] And the structure that—the subject structure still has not been removed or torn down or cleaned up, one of them, from the premises. It was mired in a court case and bankruptcy.

[00:21:59] We did try to—I want to thank the county attorney's office for trying to work with the owners and the insurance company and all that to try to get it moving along, but it has not moved along. And so it's an eyesore. There are major public safety concerns.

[00:22:15] It's very close to a school, so the county is now going to step in and clean up the mess and place a lien on the property so the county gets reimbursed for the cost. Thank you. Thank you.

[00:22:32] Mr. Rogers, can you—obviously, I'm going to support this, second it, happy to support it—but can you explain to me, is this—would this fall under a blight ordinance? And if not, why not? And if so, what is the process?

[00:22:48] Because I would think that this would. Yes. This is a blight ordinance that you can have it under a general consideration under a blight, or you can have specific ordinances, which this one is, to identify the property as blight. Once the ordinance is adopted, there's a 30-day appeal period, and after that, the House can be removed.

[00:23:10] Okay, so this is one way to do it within the blight ordinance? That is correct. Okay, I understand. Thank you. Would you like a closing, Ms. Brixman? Thank you, Madam Chair. I just appreciate my colleagues' support on this, And I know that the community will be very, very relieved to have this structure removed.

[00:23:29] If I might ask the county attorney a question through the chair. Sure. Now that this step has been taken, Mr. Rogers, when do we expect that this might be finally cleaned up and taken down? I know you probably don't know the exact date, but do we know a range?

[00:23:47] We will start taking the actions before the expiration of the 30-day appeal period. and then after that, as soon as a contract can be issued for its demolition. Okay, excellent. Thank you so much. All right, Ms. Brixman, make the motion. I seconded the motion. I'll be able to say aye.

[00:24:04] Aye. Aye. Any opposed? That motion will pass 9-0. And the last item, unconsolidated, is the Loudoun School for the Advanced Studies, also in the Agonkian District. Ms. Brixman. Thank you. I move

that the Board of Supervisors approve Motion 2B for the approval of the zoning conversion, zoning concept plan amendment and minor special exception as provided in the July 15th public hearing item number five supplemental staff report. Second. You want that second? You want that second? Sure. I'm going to give that second to Mr. Sains. Oh, Mr. Sains. Oh, okay.

[00:24:42] You want to discuss on the item? Yes, ma'am. Thank you. This is moving a school from the Ashburn district. I thought you were asking if Mr. Turner wanted to second it. But this is, I have worked with Supervisor Turner on this, and I thank him.

[00:25:02] This is moving a school out of one location, a very successful Loudoun School for Advanced Studies, into a different facility. We are having the motion tonight for approval because they actually need to open their doors for the school year this coming year.

[00:25:20] So, I just want to appreciate staff and the representatives for the Loudoun School for Advanced Studies for all of their hard work in getting this done in time for the school to open this year. Thank you.

[00:25:38] Anybody else? Mr. Turner? Thank you, Madam Chair. I just want to thank Supervisor Brissman. The School for Advanced Studies, as she said, was in Ashburn District. They contacted me and said, we think we've got a great location in Algonquin District. So we contacted Supervisor Brissman.

[00:25:54] She was very, very accommodating and has been supportive of this whole project right from the beginning, and I really appreciate it. Thank you. So the School for Advanced Studies, it was located along with an historic school for, well, in parentheses, for, quote, colored kids, unquote.

[00:26:18] And that was that area was made into a museum, a little museum. So is the museum is that still there? You don't do you know, Ms. Brixman? I'm sorry, I don't, Madam Chair. That would be in the Ashburn District.

[00:26:34] That's still. So the museum, the little museum part is still there. The old school. You got to turn that on. Yeah, which was schoolhouse and then became a church is still there. And the building and the building that was built by the original owners of It's still there and stuff.

[00:26:51] Do we know, because one of the reasons for the advanced school was to, because I remember when this happened, I was part of that whole discussion. I think you were too, Mr. Sains. When that all happened, part of it was to have the historical school for African American kids who were not allowed to go to other schools, that be part of the curriculum.

[00:27:15] And that's why they built, that's why they made that structure like a little museum. And so I guess I can reach out to the current owners and ask, is that still, what's happening to that structure? Because we did work on that for a long time.

[00:27:31] In my first term, we found artifacts. And really, it is, it was a school for African-American kids who couldn't go to other schools. And what they kept in it was a lot of the original things in the school.

[00:27:48] like the original blackboard, or chalkboard, which is about 1,000 pounds, original desk, the original, so they left it as a schoolhouse would have looked back then, and they would take, including not having any air or heat, and they would take the kids over from the advanced school to learn there.

[00:28:11] So I'm just wondering what they're doing with that structure right now, because it's really important that we keep that we keep our historic structures wherever they may be and whatever they may be so while i'm going to make a call and check on that just so i know what's happening with that um would

you like a closing miss brixman uh no thank you all right i'm able to say aye aye opposed all right that motion will pass 9-0 all right we're going to go to number four which right now i don't have any speakers for that on my sheet and i know that I have to. Will you please bring them up here? Thank you. It's like I know that I know that I

[00:28:50] would. It is the Tuscarora Land Bay 4, and this is in the Leesburg District. Hello, hello. Thank

[00:29:01] you. Good evening. We are ready when you are. Supervisors, I know we have seen this before. I mean, obviously, we've seen this before, but actually, I think whatever. Do you have a

[00:29:38] Presentation staff. I do. Yes, ma'am. How many flights is that? I think it's actually worth seeing in this presentation Madam chair. Yes, ma'am. This is in the Leesburg district. We do have some folks from the neighboring community There have been changes in this proposal Many of them in response to citizen comment Although my understanding is our citizens are not not supportive of the application but it might be beneficial to them to see the seven slides.

[00:30:18] Oh, I was going to do it. No, no, I wanted the presentation. I asked for the presentation, yeah. Great. Yeah, yes, because I don't think that the community has seen this yet. And so, no, I actually was asking for that. Yeah, I think there's 10 slides, and we're ready when you are.

[00:30:35] Thank you very much. Good evening, board. My name is Marshall Brown with the Department of Planning and Zoning, and I am presenting tonight on behalf of Tess Lynch, the project manager, who is off this week. As of July 14th, staff has received 12 comments on the county's project web page.

[00:30:55] Nine are in opposition, voicing concern with the presence of a warehouse near residential property, traffic, trucks, lighting, safety of children in the neighborhood, and the number of parking spaces, and three comments for additional information and voicing concern. These comments are attached to the staff report.

[00:31:11] No new comments have been received on this platform since publication of the staff report. And to clarify, no comments have been received on Lola. the applicant has held two public meetings one in July 2025 and one in April 2026 the subject property is approximately 15 acres it is located in the Leesburg joint management area employment place type and is just south of the Leesburg town limit it is presently zoned planned development housing for and administered as R8ADU the application proposes a special exception to

[00:31:47] permit the construction of a 130,000 square foot government building with office and warehousing facilities. This is a general view of the specs plat showing the building footprint, parking, circulation, open space, and tree conservation area, as well as the warehousing facility itself.

[00:32:05] Present on the screen is the previous annotated and annotated specs plat, and on the left is the current annotated specs plat, excuse me, the right is the current annotated specs plat, showing some changes that were done after the Planning Commission public hearing. The primary thing to point out is a reduction in parking that's the most easily visible uh pardon me before i move on though to provide additional site orientation there are two entrances on Natchez Drive cross trail boulevard is located on the southern side of the property and the W and Od trail forms the eastern property boundary the Kincaid forest neighborhood hold up miss i said

[00:32:41] you got a pointer down there so he can point to see what he's talking because because i told you guys once you guys start saying words like north south east west i don't know what you're talking anymore. So can we get a pointer to show like where where the entrances and exits and stuff would be so I can see that clearly and everyone else can see that clearly? So pardon for the shakiness but the two entrances are right here so this curve that you see that is Natchez Drive. Okay. And the two entrances are there. Okay. One and then two? Okay. One and then two. Yes ma'am. All right. To the

[00:33:17] south is Cross Trail Boulevard that forms the southern property limit. Okay. On the eastern side this is the WNOD trail. Okay. And the neighborhood Kincade Forest is to the north. It forms the boundary to the north side. Okay. Thank you. Yes ma'am. This is a general view of the proposed exterior elevations. I will note again for direction directional purposes the elevation labeled as south exterior elevation on the slide is actually the western facing facade

[00:33:53] which faces natchez drive this is just a labeling error on this slide so apologies for that so again where it says south exterior elevation that is really the west this is what faces natchez drive any okay okay the tuscaro crossing development was originally approved in 2015 for the development of 576 residential units 85 000 square feet of commercial uses and 1.2 1.62 million square feet of industrial uses. Land bay 4 was designated for a public or civic use.

[00:34:31] So on this slide you can see that as highlighted in blue. A subsequent ZCPA on the subject property amended the original proposal for the development and designated this land bay to be used for public, civic, school, county use, or open space. The general plan supports a range of light and general industrial uses in the Leesburg JLMA employment place type. The policy supports extensive buffering to shield industrial uses from public roads and any adjacent residential uses. As the

[00:35:07] preservation and protection of the county's forest cover is also included, additional TCA on this property is shown on the specs plat. There are staff recommended conditions of approval as shown on this slide. The three conditions that are listed in green were added pursuant to planning Commission discussion to include parallel parking restrictions on Natchez Drive subject, pardon they're not green anymore, parallel parking restrictions of the last three that are on this list on Natchez Drive subject to VDOT approval, hours of operation, limitation, and clarifying the timing of truck delivery.

[00:35:44] I will also note that there is one condition on this that is not listed on this slide for the applicant to make a good faith effort to provide tot lot fencing on the residential land bay across from the site entrances on Natchez Drive this condition was also generated pursuant to commission discussion the planning commission forwarded a recommendation of approval to the board at the May 14th commission work session staff supports board approval of the application subject to the conditions as conditioned the proposal is consistent with the policies of the general plan this concludes my presentation I am happy to take

[00:36:23] any questions at this time. Thank you very much. Ms. Umset, this is your district. I will go to you first. Thank you, Madam Chair. I want to thank, I just got an email from Dan Galindo. I'm going to have to read that after I ask these questions. I'm sorry, Dan, if that was to make sure I didn't ask stupid questions, but, um, so, uh, as you know, um, and Ernie, thank you for, and, and

[00:36:57] Bill, thank you for being at two community meetings, one last summer, one more, much more recently. Um, the community's concerns, as you know, were, as you've put in, in the briefing truck traffic my understanding is we anticipate four to five trucks per day the rest of the traffic should be employee

traffic and I there there are limits on the types of vehicles that can be used so no box trucks coming in for the employees it's there might be a box truck

[00:37:35] delivering something but the employees will be limited to i think vans suvs sedans pickup trucks so four to five truck visits a day for deliveries is something i think is important to note thanks according to mr brown supervisor sayings deserves credit for electric vehicle recharging stations that in a meeting he had asked for this proposal would move nine parking spaces

[00:38:15] off of natchez those parking spaces have been monitored by county staff and found to be occupied primarily by w od trail users those nine spaces would move to a new lot for w od parking which would have signage and there would be two ev charging stations among those nine the county is proposing to work with mr capretti who is still in charge of the hoa which is why

[00:38:52] it's so hard for the residents to get a unified position out because they don't control the hoa But Mr. Capretti has agreed to work with the community and the county on putting up a fence, either along the sidewalk to keep kids from running from the playground into the road or around the playground, whichever the community and Mr. Capretti preferred.

[00:39:20] The county is restricting truck traffic to the southernmost entrance, the one closest to Crosstrail. So there will be no truck traffic using the more northern entrance that is closer to the community.

[00:39:37] Yes, ma'am. I'm going to stop you because your time is up. The two clocks have something different on them, and I have been watching the clock from the time you start talking. However, you will make a motion. I will. So you have an opening and a closing and a motion, so you have plenty of time left, okay?

[00:39:53] Thank you. The clocks are different, so it's going to be a little confusing. I know I'm watching these, but that one over there says something totally different. Just so you guys know, my colleagues, don't look at that clock over there. That's not right. Ms. Bricksman?

[00:40:11] I have no questions. Thank you. Mr. Crony? Thank you, Chair Randall. I want to ask a clarifying question. I had a great meeting with Ernie Brown and Bill about the new additions to the application for the community.

[00:40:36] We talked about potentially adding some trees to the area near the tot lot to add to the buffering. Has that been further considered? It is not in the draft conditions of approval.

[00:40:55] It's something we're willing to work with HOA on, though. Yeah, I just think it's kind of bare, and I understand for safety reasons the fence. I think that makes perfect sense, because the playground is nearby this land bay.

[00:41:11] But I think trees would help as well. It looked pretty bare when we met, and I think it would help, either working with Michael Capretti or, you know, the HOA. And Supervisor Crono, thank you for that.

[00:41:28] Most of our conversation has been around the proposal of adding the fence. And that is that if the board desires us to move forward on that, that could be something we could look at. But it would really, those kind of things would really need to be something that the HOA wanted.

[00:41:44] So we would want to craft that carefully in a way that it's not, we wouldn't require it. If they didn't want additional trees there, then we wouldn't want to put them there. Right. I'm just trying to help with some buffering. Certainly. But the fence, I think, is something that is currently in the staff report that we are very supportive of to create that clear safety factor.

[00:42:05] And if the community wanted to discuss additional trees, that may be something that the HOA and the disagreement could accommodate. Yeah. And the 100, how many parking spaces did you reduce? Is it 100 with the feedback from the community?

[00:42:21] So we reduced it from the 520 that's allowed by ordinance down to 425. okay so it was about about a 20 percent reduction okay and and there are going to be no box trucks i thought there were going to be a few box trucks so there are box trucks the county the county operates through contract uh eureka for example when we pick up our surplus um and they they do that twice a month and uh the county does have two smaller box trucks but they're below the 15 gross uh 15 000 ton gross vehicle weight that's stipulated in the in the item and what's the the height, the maximum height of the building, of the warehouse building? The ordinance allows

[00:43:01] 40 feet. We are proposing 35 feet. Okay. And I think lastly, the traffic. So is there a reduction in traffic from the civic or school use? There is. And we actually have a presentation as well with all the details there i i think of you as staff so i'm sorry all right thank you already a staff yes all right thank you um mr saints the way i'm sorry i was gonna ask a question

[00:43:37] just about who we're asking right now to staff just our okay staff this half not this half today Okay. Well, if you know the answer to this question, if not, I'm assuming you do. But if you don't, I'll wait until they do their presentation. What are the new hours you're proposing?

[00:44:02] The new hours, I have this right in front of me, are Monday through Friday between 6 a.m. and 6 p.m. This excludes periods of local emergencies. okay and delivery hours will be what deliveries are limited monday through friday between 7 a.m and 6 p.m okay and if you go go back to where you had the different place types that that slide keep cruising okay so because i know some of the residents and rightfully so are asking are saying

[00:44:36] hey you had it identified as a public it says public and civic so and then but if you notice at the top you have public parking open space what is the difference between those two you know reason i asked that question because i you know reading some of the emails some folks are saying well you identified it as public um so they're assuming it's meant as a park certainly so this is the original z map um the second image is less colorful but it amended the uses for this land bay the proffer state specifically uh for any public civic school county use or for open space

[00:45:15] so these were the proffered uses for this land bay okay all right and then the other one at the top that's where it was go back to it what's it what did it say public park and open space that's when you see that that's truly what it means for like actual park passive or recreation or something to that effect correct correct for a park use okay and i believe there is a new design from conversations with the residents.

[00:45:46] You didn't, well, yes, that, but there's another illustrative, I guess, is that in the applicant's presentation? Okay, we'll see that when we get there then. Okay, and then just to make sure I heard you right, there's currently parking on Natchez Street, but if this was come to pass, we would work to eliminate street parking.

[00:46:11] That's correct. It is subject to VDOT approval. was a VDOT maintained road. Okay and then also what type of vehicles will be allowed for delivery because I know we're and also what type of employee vehicles will be on site to clarify. Then I may defer to the applicant team for the specific type of vehicle there are conditions limiting certain types of vehicles if you give me one moment to get to that page. So for vehicles the condition state county-owned heavy trucks and heavy machinery including box

[00:46:47] trucks and machinery over 15 tons or longer than 26 feet are prohibited on the property. This again excluding periods of local emergencies. So if a moving truck that's 26 feet that's not allowed? That's correct over 26 feet. Okay. There are also in the conditions county-owned vehicles on site are limited to non-diesel pickup trucks, SUVs, vans, skid loaders, and sedans. So only like a Ford F-150 or a Dodge standard Ram truck something like that? Correct. Okay thank you. Mr. Turner.

[00:47:19] thank you madam chair um trucks will enter through the two main entrances it seems to me early on in this application i heard concern from the residents the trucks would be entering from the back side by the houses they are limited to the first entrance there are also restrictions on right turns from both of those entrances so entry through the southern entrance on natchez drive but any exiting vehicles of any type are limited to left turns so they do not go through the neighborhood okay thank you so i i i've i've come out to this location twice one when we were

[00:47:56] talking about the um the black chamber data center the data center owned by black chamber which is the name of the of the um group um and then another time just to look around you know it is interesting to me which planning commissioners voted against this it was it was mr miss jasper mr miller and And Ms. Myers, and I know Ms. Myers has gone out, my planning commissioner, a couple of times and talked to the community as well.

[00:48:28] I am fully aware that we need this facility. I am fully aware of that. And I have so much respect for the people who are going to be working in such a facility. I am uncomfortable making anything that was to be housing anything but because we have such a need for housing in the county.

[00:48:52] I today, just today, went to an event with the Virginia Association of Counties, and the number one issue in our region, the number one issue is the lack of attainable homes. And so I'm a little uncomfortable with this not being homes, and we have so little land that's under the control of the county that, you know, I'm uncomfortable with that.

[00:49:26] I'm going to ask and answer a question myself, Dan, because I'm imagining that the county has looked everywhere, and this may be a question for Mr. Brown, the county has looked everywhere else, and this is really the, is this like the only possible site for this facility?

[00:49:43] Because, again, we have so few places that we can even start to talk about putting homes, let alone places that are pieces of land that are under county control. So there's been, I'm assuming there's been some type of look around for other places.

[00:50:03] And then to Ms. Umstead, I'm going to, if you know, if you could let me know, your Planning Commissioner did vote for this. Can you tell me what his thinking might have been? Because I'm sure he's, I mean, I've no doubt that he did exactly what my Planning Commissioner did and went out and talked to the community.

[00:50:21] Can you tell me what his thinking was that he thought this was an affirmative vote for him? My understanding is that Mr. Barnes felt this was consistent with the general plan.

[00:50:37] It's usually what he looks to. Consistent with the purposes, one of which is county use for this parcel. He will almost always take into serious consideration what the neighbors are thinking.

[00:50:59] I think in this case, he felt that Mr. Brown and his team had bent over backwards to try to make improvements to the project to address the concerns of the neighborhood, including a six-foot berm along Natchez, north of the southern entrance, et cetera.

[00:51:22] Thank you. Thank you. Dan, you have an... So I would defer to Mr. Brown or to Mr. Hemstreet about the amount that was searched, but I will note that this site, when it was re-zoned, was approved for the public use there. To allow this particular site to allow residential would require a ZCPA.

[00:51:40] So this is not taking away rights to residential that could otherwise be built. This has always been planned as a public use site since that rezoning, at least. Okay. Well, ever since the rezoning? Yes. Okay. Okay. Ever since the rezoning is an important distinction.

[00:51:58] Hello, gentlemen. How are you? It's good to see you. Mr. Brown, it's so strange to see you on that side of the table. So I think it's confusing everybody up here. Me as well, Madam Chair. That's okay. So you know the drill. You all have 10 minutes. You can stay sitting there or stand up, and we're looking forward to seeing the presentation.

[00:52:16] Thank you, Madam Chair. I'm going to quickly defer to Mr. Junda to give the presentation, and then I'll make myself available for any questions. Wonderful. Thank you. It's up. You want the clicker? Yeah. Good evening, Board.

[00:52:34] My name is Bill Junda. I'm a civil engineer with Gordon, and I'm a consultant working for Loudoun County Department of General Services. I think you all know Ernie Brown already. No need to make that introduction.

[00:52:52] So I think you all know where this site is. It is in the Tuscarora Crossing development on Crosstraw Boulevard, about halfway between Route 7 and Sicklin Road. And staff has done a good job describing the use and how we got here. This site was always proffered to be a public use site.

[00:53:10] It was originally slated to be an elementary school. And about three years ago, Loudoun County Public Schools reached out to the county and said, we no longer have plans for another elementary school or any school in this vicinity. and we're basically relinquishing our rights to this property. And Ernie can speak to the site selection process that occurred to end up with this headquarter building.

[00:53:29] Okay. I won't regurgitate all of this information the staff already presented, but I did want to clarify what the warehouse uses, the intensity of it. People think warehouse, they think of like a commercial flex building that a private developer would build.

[00:53:46] That is not what this is. I learned through this process from Ernie that Loudoun County either owns or leases 150-plus properties throughout the county and the Department of General Services is responsible for maintaining all those facilities. And right now the where maintenance items are stored is scattered throughout the county. This will consolidate all of the maintenance storage.

[00:54:07] Think of it like every time somewhere in one of your buildings a light bulb goes out or an air filter needs to be replaced. Someone from staff, Department of General Services staff, has to go to one of these warehouses, and it will be this one, hopefully, to pick up that maintenance item, and then they drive to the other facility and perform that maintenance.

[00:54:24] This will also be the records repository for Loudoun County, and this is where the majority of Department of General Services staff will reside now. They're going to have a lot of office space here. So this is our traffic slide, and as you mentioned, Supervisor Tocroni, there is a significant reduction in vehicle trips.

[00:54:47] The elementary school that was proffered and studied during the original rezoning results in almost 2,200 weekday vehicle trips. This proposed warehouse use is just over 1,200 vehicle weekday trips. So it is a 43% reduction from the elementary school to this use, and there's 546 fewer AM vehicle trips.

[00:55:09] It is also important to note that with the development of this land bay, there are multiple proffer triggers that the developer will have to submit warrant studies and at the appropriate time they will install the signal at Natchez Drive and Crosstown Boulevards. That is not something that the county has to pay for or do.

[00:55:27] That is the developer responsibility. We have a number of commitments that we've made on this project. We have a large open space commitment, lots of tree conservation area. We have a really good LID commitment. doing a large bioretention in the front of the property. We've agreed to a condition to keep the height of our site lighting down really low to 14 feet in height to reduce any potential glare that would leave the property. We have lead greed building commitments, solar-ready roof construction commitments. We have a commitment to do 20 EV charging spaces. That's 10 EV chargers

[00:56:04] that'll be installed on day one, and then another 10 parking spaces that will have EV-ready infrastructure in the ground so that a pedestal could be installed at a later time. We've also committed to providing meeting space for the local community, and I'll talk to that in a second. We do have lots of other changes that we made to the program throughout meeting with the community, which I'll also cover, and then at the end we have two additional board considerations.

[00:56:30] So we met with the community twice. We held a public meeting in July of last year and then again in April of this year and that led to some of the most meaningful changes to the program. We did reduce the parking footprint significantly as I mentioned earlier we went from 520 parking spaces to 425. We really beefed up the landscape buffers from where we started and I'll show you those. We did a complete building redesign. There was a lot of concerns over traffic and deliveries and how that might impact the local neighborhood so we made a lot of transportation improvements

[00:57:03] that I'll walk through. And then we offered up to the community the first floor large meeting room in this building. Currently, Tuscarora Crossing neighborhood does not have an HOA facility or a clubhouse or a pool. That is coming. There's a site plan processing. But in the interim, we're willing to make our first floor meeting room open to them so they can hold their meetings there.

[00:57:26] So I'll start with the landscape buffers. And I'll try not to use directional language too much. At the top of the plan, the Kincaide Forest neighborhood is to our north. That already had a proffered 25-foot tree conservation area.

[00:57:44] We have since also added another 25 feet of landscape buffering with enhancements with additional evergreens. And we also have a proposed wood board-on-board fence at the back of the parking lot. What also is not on our property, but you can see on this graphic, north of us, the Kincaide Forest HOA has another 50 feet of open space that's fully vegetated.

[00:58:05] So there's 100 feet of either existing vegetation or proposed vegetation, plus an 8-foot-tall opaque fence completely screening the parking lot from their neighborhood. The Tuscarora Crossing neighborhood will see this site from Natchez Drive from the front.

[00:58:22] The zoning ordinance actually only require street trees, so that's like one tree per 50 feet, which is pretty lean. We had originally started with a type 2 road corridor buffer, which is 15 feet width of full plantings. We have since increased that to a type 3, which is the highest buffer that the zoning ordinance offers for road corridors.

[00:58:40] And at Supervisor Umstead's suggestion, we added a six-foot berm as well. And so you can see on this cross-section we have from the street, from left to right on the graphic, we have the berm with the landscaping. Then we have a large bioretention stormwater facility, which will also be heavily landscaped.

[00:58:58] And then we have the parking lot landscaping, all screening from the road. So this was the original building design. This looks like your typical commercial private development flex warehouse building. As you can imagine, we got some feedback that we needed to do better. And so this is hot off the presses as of yesterday. This is a better 3D rendering of the graphic that staff showed from our conditions of approval. So we met with the architect on this project and actually did a Google Street View drive through the neighborhood and tried to look at the architecture, the style, the materials of the neighborhood and incorporate that into

[00:59:35] the project. We've since received a lot of feedback that this actually looks like an elementary school, which was the original intended use. One slide. Absolutely. One more. So that's the, I'm sorry, one of, that was the original. That was the, I wanted to show you where we started and where we are now to show the progress we've made. And so these are the elevations that staff showed as well. These are what that 3D image represents. So traffic was a big concern and we

[01:00:12] got a lot of feedback from the community about that and staff talked to some of this already. We have agreed to limit all of our traffic leaving the facility. They must turn left and go straight out to Crosstown Boulevard to avoid any potential cut through traffic through the neighborhood and we've done that through signage. We've actually done it with like warping the curbs to block people from making that right turn. There was questions about the types of deliveries that would occur. And when people think warehouse, they think, oh my gosh, it's like a flex warehouse, like commercial project that would have on average 37 deliveries, most of them coming in 18 wheelers

[01:00:48] per day. This is not that type of use. Based on the current delivery experience at the other DGS warehouses, we're expecting four to five deliveries per day. And the majority of those will actually arrive in like the Amazon trucks and the FedEx vehicles that are making deliveries in the neighborhood. Ernie's been working in DGS for 10 years. He said he's never seen an 18-wheeler make a delivery to the DGS warehouses. That doesn't mean it may never happen, but he has never seen it in 10 years. There was also concerns just about the Natchez Drive roadway itself. It's a VDOT road. It's two lanes, but it is wide enough to allow parallel parking on one side,

[01:01:25] on the other side of the street. And what we learned from the community input was that the majority of the people that park on the street near Crosstrail Boulevard are actually parking there, not from the neighborhood, but to get to the W&OD trail. So they're not residents of Tuscarora Crossing. They're just parking there because it's convenient to get to the trail.

[01:01:42] And they actually make it really hard to see. If you're leaving the site, you have to kind of jog out around them to get up to Cross Trail Boulevard. When you pull up to the intersection, it's kind of blocking your view. It's hard to see. So this is an issue that we're hoping to solve with this project. So we've done a couple of things. We are, one, we're restricting all of our trucks and deliveries to the first entrance to minimize any potential conflict with the residential neighborhood. But more importantly, the next one is we are going to put up no parking signs and restrict parking between our entrance and Cross Trail Boulevard. That will remove about

[01:02:19] nine on-street parking spaces that are generally being used by the W&OD parking. And we are going to go ahead and take those and put those nine spots on our site. So the blue parking spaces right at the entrance there those are going to be designated for trail access only uh and that'll take those parkers out of the street put them into the site um i'm sorry i have to treat you all like any other applicant which means your time is up absolutely yeah that's really uncomfortable for me to do that with mr brown but we were on the last slide very good very good okay and i'm going

[01:02:56] to go to miss umstead for questions for the applicant which happens to be mr brown all right we're ready ms umstead do you have questions yeah uh thank thank you madam chair um one of the concerns that i think we haven't addressed tonight yet um is uh comes from one of of the residents who was actually two of the residents who were concerned that their access,

[01:03:32] the access between phase one of the residential component of Tuscarora Crossing, which is the folks who live along Natchez and the other streets there, and phase two, which has not yet been built, but we believe the site plan is in the works.

[01:03:52] There was concern that these two parts of the same community would be cut off by this project, and I know you are providing for access across county property to those.

[01:04:08] Could you talk a little bit about that issue? Absolutely. So I went to this slide that shows where the new parking spaces are for the trailhead, But this also shows in yellow the existing sidewalk along Natchez Drive. There's an existing shared-use path that actually crosses over Crosstrow Boulevard.

[01:04:24] It actually bridges over the trail. Or there's also another trail that has been built, and it goes down towards the W&WD Trail. So someone could walk across the campus either that way or follow Crosstrow Boulevard across to Phase 2. And to what extent will any of this access be ADA compliant?

[01:04:45] So everything shown on the screen in yellow, and also the red for the connection for those parking spaces is all ADA compliant. Okay, thank you. Ms. Brixman. No questions. Thank you.

[01:05:04] Mr. Letourneau. Thank you. I have never loved the location here. I don't think that's a surprise to you guys. But I was a little taken aback by the size of the parking lot. It's over 400 spaces. I don't know that I fully appreciated that the whole department would basically be working here.

[01:05:23] So how many people are we talking about exactly? So obviously this excludes the landfill operations because that's a little difficult to move. But the balance of the department, which is currently about 206 individuals, so you subtract off the 40 to 50 that are in the landfill operations, you're looking at 150 of which the vast majority of them are maintenance staff or public work staff or stormwater staff that come in in their private vehicle.

[01:05:54] pick up a county vehicle and then go perform their duties across the county so you're to use the term double parked you're providing for the parking of their personal vehicle and their work vehicle which has all their tools equipment and specialty gear fleet vehicles yes sir um okay so what do you think the noisiest thing that's going to happen here would be um besides my staff yelling at me they get really loud um well we do that that's right so you're familiar with that uh Truthfully, this is a fact of a very silent operation.

[01:06:24] The current operations that we have is right across, on Sicklin, right next to where the state police office is just down on that hill. We have just trucks and sedans going in and out of there on a daily basis.

[01:06:41] That's really the loudest. There's not any particular activity that goes on that would be uniquely loud. Okay. I know, I don't know what we have for speakers tonight. if we do have speakers opposed to this i would be curious to hear if you would rather have a residential community in this location than this warehouse because the the when we have development the the question is not between this or nothing it will be something but you could have a fairly densely packed affordable housing project here if it's county-owned property that's something that we do or you could have this use so just if there's anybody planning on

[01:07:15] speaking in opposition tell me that i'm curious thank you thank you i agree with that i would like to hear that too mr kirchner thank you madam chair thank you for the presentation i've got a couple follow-up questions so and some of them were answered by supervisor letourneau in terms of why do we have 400 spaces you explained that we got a we got a fairly sizable fleet so at any time i guess we could have up to 200 vehicles swapping out at some point yes sir okay so that That answers that question.

[01:07:47] Obviously, this was originally planned some time ago for school. How does this compare in terms of intensity of use, amount of traffic, school buses versus I think the box trucks that you have there as would a school that would have been planned for this?

[01:08:05] And I don't know if this would probably have been an elementary or middle school, I'm guessing. Elementary. Yeah. So, can you give me -- can you give some level of comparison in terms of intensity? Is it similar? Is it higher? Is it lower? compared to an elementary school and I'll just give you an example. Elementary schools bring in material on 18-wheelers and they do it in the night to be able to stock cafeterias things of that nature and that's necessary to avoid the deconflict during the school day and so you'll see that but if you look at the numbers that Bill has up in here you'll see the comparators and just traffic alone and I'll be quiet like Bill. Oh there we go I missed that earlier. It's a

[01:08:41] 43 percent reduction in overall traffic per day. In terms of the size of the building? How does it compare with the size of an elementary school? Do we know? I think we are less square footage than it. So we have less traffic, more spread out, and obviously fewer buses compared to box trucks, et cetera, and less intensity of use.

[01:09:06] Yes, sir. Okay. And we get a lot of proffers for the buffering. All right. Thanks. So first of all, the new design is much, much better, and when I talk about government by example, this is it, between the new design and the charging stations and things like that, this is much better than what we started off with.

[01:09:26] It will lead me to very respectfully ask this question because we've been asking this question to a lot of our applicants and so I think it's fair to ask the question of ourselves. If we could have done a design this nice and done the things, the buffering and all the things that we can do them now, why couldn't we have done that before?

[01:09:45] sometimes you know some of the anxiety and the heartache and the things that come later that when the community asked it could have possibly come before it and for me and again with all the respect because you know I mean that to you Mr. Brown but government by example means like you know when we're asking applicants come with us the first time with a really good product and so we're going back and forth I think we have to apply that to ourselves as well so how did we why don't why did it take this long for us to get here so it's thank you for the question I think it's actually a very good and very fair

[01:10:24] question you this is unique because this is the board will always maintain and own this property so any change that is desired in the future the board will do so so that's a that is a clear leadership by example construct that it's not being left to, once it's approved, it goes off to a private entity to maintain unto themselves.

[01:10:48] This is something that the board will have stewardship responsibility in perpetuity. I personally am, as you know, a form over function person. So we started looking at build the functionality as the baseline. I needed to make sure that we could as efficiently and effectively deliver county operations in the most cost-effective manner to be good stewards of the public trust. And so that's where we started. And the process, which I think was really proper, it identified those additional things that

[01:11:23] the community wanted and they were added to it. That does not need to stop here either. Like the normal process does stop here with private development. The board living out their ethos leadership, by example, can continue to improve the property and manage and modify the property's purposes and uses as the need may arise. You all exclusively have that authority, unlike any private developer. They don't have that capability. So a very wise person told me one time that the county is a very good neighbor because there are nine people on this board that listen.

[01:12:01] And when there are issues and concerns, unlike private development, the public has a venue to air their concerns, and you will have the ability to evaluate those and make changes as you see fit. All right. That's a good answer. Thank you very much. I appreciate it.

[01:12:18] I believe I only have four speakers on this item. No, no. Maybe just three speakers on this item. Do I have any more down there? Because I'm only counting three speakers right now. And they are, and if I say your name incorrectly, I apologize in the back, Farouzia, Farad, Isham Dayab, and Emily Johnson.

[01:12:41] Those are the three speakers. If you are here, and I'm sorry if I did not say your name correctly, you can come to either podium and have time to speak now. Good evening, ma'am.

[01:12:57] a crossing community overlooking Land Bay 4. The staff report states that one of the required considerations for a special exception is compatibility with surrounding land use.

[01:13:17] This property is bordered by residential neighborhoods on three sides. The report proposes numerous conditions, 19 pages worth of conditions, to address concerns about operating hours, deliveries, vehicle types, lighting, buffering, fencing, landscaping, trek routing, and parking. Those conditions suggest that compatibility is not a simple or settled issue.

[01:13:39] I asked the board to consider several questions before, several questions before making their decision. First, the report lacks details about the operations and future operations. How many employees are expected? I think that was answered to begin with. How many county vehicles will be stationed there? What types of equipment, what types of activities are going to occur there?

[01:14:01] does the category public work mean snow plows, paving trucks. This indicates beeping sounds all times of the day during snowstorms or during paving sessions, which are in the summer. And could operations expand over time? I think that's something I've not heard without public hearing also. This is proposed with 500, excuse me, 425 car parking spaces and 116 work trucks. I think I don't understand how how does that massive footprint lead to an estimate

[01:14:36] of four or five delivery trucks. It's very unclear how this analysis is conducted. Number two, the traffic analysis compares this proposal to a previously approved school use. While that may show fewer total vehicle trips, a government office and warehouse functions vary differently than a school. Have the operational characteristics of this specific use, including deliveries, fleet activity, and emergency operations been fully evaluated? Thank you. Thank you. Aysham

[01:15:12] Dayeb. Good evening, sir. Good evening. Thank you for letting me speak. We have been in this situation plenty of times before, so we are well acquainted. I'm just going to talk through, I don't have a speech prepared. I want to talk through a couple things. First, I want to address the HOA issue. The HOA currently does not speak for us. It would appear that they are in conflict of interest because they work with the county on projects that we don't agree with and we have no say in the HOA. They've never turned it over so anything doing with the HOA does not represent us.

[01:15:48] 26-foot trucks are allowed in case there's confusion. Anything above that is not. I sent pictures to everybody of what a 26-foot truck looks like on those roads. It happened to be two on those streets i don't know if everybody got them but they're eyesores and they look dangerous this land is not this is for civic public use originally we were sold as a school which everybody knows it's factual now it's not this intersects it's between three neighborhoods i mean logically speaking it doesn't make any sense whatsoever there's no traffic guards

[01:16:23] for this operation whereas a school does this is kind of a free-for-all no left turns doesn't really satisfy or no right turns doesn't really satisfy our big concerns this is an industrial use I mean through and through you can say it's a warehouse operation on a small scale but a warehouse is a warehouse I mean you can have trucks coming in you have trucks beeping we're currently serenaded every day with a beeping of construction across the way and so that's going to be an ongoing thing during the construction of this horrific project and then ongoing trucks beep 26 foot trucks beep

[01:16:59] vans beep everything beeps in a warehouse environment for safety reasons we were promised not this i mean it feels like a bait and switch we bought into this community with our hard-earned money our hoa is now jerking us around and it's in conflict i just want everybody to really understand that negotiations with our hoa is in conflict of interest with our actual community and it's the board approved this for public use 2019 thank you thank you sir thank you Emily Johnson. And are there some more? We have two more. Good evening, Ms. Johnson.

[01:17:33] Good evening, Supervisors. My name is Emily Johnson on behalf of the Piedmont Environmental Council. The Tuscarora Crossing Land Bay 4 project is more than just an office development. If a government building goes here, it should be a reflection of our county energy strategy

and a demonstration that the county leads by example, as the chair noted. We don't just talk about sustainability here in Loudoun. We act on it. While there have been good updates to this application since the Planning Commission we can do better. We need buildings that are solar deployed not just solar ready and that are complete with battery storage able to participate in Virginia Energy's demand response programmed. This would demonstrate County leadership in the latest grid enhancing programs to build resilience, protect public health, cut emissions, and save

[01:18:13] taxpayer money. We also need robust charging infrastructure that future proofs and encourages a fleet of electric County vehicles with the added benefit of a new potential for two-way provision of power as needed by a strained grid. In this regard, we are glad to see there is no longer just two charging spaces proposed. Further, like has now been added to this application, we need to consistently encourage public access across county properties, such as the reservable meeting spaces and trail gateways. Ultimately, we encourage you to ask questions about what is possible for this future headquarters for the Department of General Services, and we hope you remember for all county facilities that what we build is an embodiment of

[01:18:49] our principle. So let's have sustainable, forward-thinking structures that we can utilize and proudly invite people to well into the future, taking standard proposals and continuing to raise the Loudoun standard. Thank you. Thank you, Ms. Johnson. I'm going to spell the next name because I'm going to mispronounce this name and I apologize. It's K-W-A-W-A-J-A Ahmed. And then after that would be Amir Yash. Good evening. Hi. What's your name for me? Good evening. Yes, I'm Khawaja Ahmed. Thank you. Good evening members of the board. I'm Khawaja Ahmed.

[01:19:23] I'm a resident of Tuscarora Crossing. I wanted to directly address supervisor Letourneau's question in regards to a very astute question in regards to whether the residents would prefer an additional neighborhood instead of the proposed warehouse office with flex space and and yes that is correct.

[01:19:41] Maintaining the continuity of the community would be consistent with more housing and there could be no better opportunity to provide affordable housing for our first responders, for our firefighters, our police officers, our teachers, our nurses. These are individuals that serve our community day in and day out and there's no better there's no better opportunity to recognize their efforts and the sacrifices that they make protecting our communities by giving them an opportunity to make a foray into the entry of home ownership, which is the best way to build wealth, to build that generational wealth that can sustain generations for lifetimes.

[01:20:20] So I wanted to address Supervisor Luterno's question. Thank you. Thank you, sir. Amir Yash, it will be your last speaker. And then I will go to Ms. Umstap for a motion. Good evening, sir. Good evening. Thank you so much. My name is Amir, and I'm a resident of Tusk Aurora Crossing.

[01:20:38] I just want to present an analogy. On this screen, we can see on one side of the Tuscarora Crossing are the existing residential neighborhood. And on the other side, there are planned future residential community in land-based salmon.

[01:20:57] Approving an industrial zone at this location in between, it will cause an unnecessary conflict between residential living and industrial activity. turning this into an eyesore and negatively impact the character of the community as a parent I have serious concerns about safety how can we expect children to safely cross through an industrial area with increased truck traffic noise and potential hazard just to

access the community center that is supposed to serve them community planning in my request to all of you

[01:21:35] is to prioritize safe connections, family-friendly environment, and well-being of residents, not place children and the families next to industrial activity. Thank you. Thank you, sir. Thank you. Ms. Umstead, I'm going to go to you for a motion.

[01:21:51] Yes, ma'am. Thank you, Madam Chair. I move that the Board of Supervisors forward LEGIE 2025-0020, Tuscarora Land Bay 4, Specs 2025-0036 to the September 15, 2026 Board of Supervisors business meeting for action.

[01:22:13] Motion made by Supervisor Umstead. Second by Supervisor Kirchner. Discussion on the motion, Ms. Umstead. Thank you, Madam Chair. I'll be brief. I appreciate the community coming out, and I know there are many more of you here than spoke. And I appreciate how courteous you all have been in talking to me and in talking tonight.

[01:22:42] This, as I notified some of you, is going to the September 15th business meeting. Traditionally, we would not vote for something on a night when there is significant citizen concern. So I think the board has listened very carefully, and you certainly are free to reach out to any of us between now and September 15th.

[01:23:08] Thank you. Thank you. Ms. Bricksman? Thank you, Madam Chair. I apologize if I didn't hear this before, but if I might ask the applicant a question real quick? Sure. This land bay was originally slated for a school, as I believe.

[01:23:29] And I think that in your work, you have compared the traffic that would be at this site with this use versus the traffic that would be here if it was a school. Would you mind sharing that?

[01:23:45] Yes, ma'am. Supervisor Briskman, in February 2015, this was approved as a school site. And the analysis that Bill Junda and his team did, it was a 42 percent reduction, 43 percent reduction in the traffic associated with the site that it was already approved for.

[01:24:05] Can you hear him, Mr. Bricksman? I can. Thank you. And then also, would this be considered an industrial use? I mean, we're not asking for a rezoning to an industrial use, right? This is actually classified as a government use that has office and warehouse components to it, but the use is government.

[01:24:28] Okay, so that's not industrial. I just wanted to make sure we're clear on that. I'm happy to support the motion, and I will likely support the application when it comes to the business meeting. Thank you, Madam Chair. Ms. Zucroni? Thank you, Chair Randall. I want to thank everybody who came out tonight.

[01:24:47] I think one thing that came up that I'd like to have more information about is the noise. You know, we heard from residents that construction noise could be burdensome in the community.

[01:25:03] And then I did like the idea of, you know, perhaps rather than solar deployed, solar ready, or rather, no, solar deployed and not solar ready and battery storage. You know, we're going to be talking about this regarding data centers, and I do think we should lead by example with solar and with battery energy storage.

[01:25:27] And, you know, will there be chargers for the electric fleet? Is that something that you'll have? Okay, good. And lastly, I think, you know, residents want to know whether you're going to expand this

facility over time or if this will be the footprint.

[01:25:47] You know, I heard that people were concerned about potential expansion, so I'd like to get an answer to that, too. Thank you. You want that when it comes back? Yes, please. Okay. All right. So, oh, I didn't see you.

[01:26:04] I'm sorry, Mr. Sains. Sorry, I turned it on late, but following along, I know you mentioned the hours would be 6 a.m. to, what was it again? 6 p.m., Monday through Friday. Could we look at possibly doing 7 a.m. or 7.30 or make it a little bit more acceptable?

[01:26:31] double check when our window is for deliveries because again yeah you know as the resident spoke earlier trucks backing in yeah they do beep so if we're having trucks backing in at six seven o'clock a.m. if we could reduce you know have better hours for for those type of deliveries um ask the question about the 26 foot uh truck so if we can reduce the um the length of the trucks that are doing the deliveries, because those are big, even 26 is a big moving truck as well.

[01:27:05] So if those are things you can look at and bring those back to us before, if this does move forward to September, bring that back to us before then, please. Thank you. So I will vote to send this on because there's no reason not to vote to send it on.

[01:27:22] I am very skeptical about whether I will vote for this when it comes to the board, not because, I mean, the improvements are significant, and I really, really appreciate it, and I realize the need. But I often talk about what people expect to be near their homes when they move in their homes.

[01:27:40] And I often, you know, say that, you know, sometimes I give this example a lot that I, you know, I have a man, a gentleman who moved very near the airport and literally asked me, can we shut the airport functions down at 6 o'clock?

[01:27:56] I told him we could not, and I asked him, like, did you not know the airport was there? And he said, I wanted the convenience of the airport, but I don't want to hear airplanes after 6 o'clock. So I am a big believer in what people, helping, respecting what people expect when they buy their home.

[01:28:18] So this is, yes, the improvements have been significant and great, and I thank you. And I know the need. But when I get to these hard decisions, I almost always come down to, and what if it were my house?

[01:28:34] And we're at my house, and I moved in and checked to see what would be next to my house. And what was going to be next to my house was an elementary school. And then it changes to be a warehouse, although not industrial as we think of it, still a warehouse all the same.

[01:28:54] I think I would not really appreciate that. And so I will be voting to move this on. And I will take a look at it between now and September 15th. I will take a look at it. Like I said, I have been out there twice already.

[01:29:09] And I will give it some more thought. But I do want to say that the voting to move it on doesn't necessarily mean I'll be voting for it when it gets to the board on the 15th. All right. Ms. Umstead made the motion. Mr. Kirsten seconded the motion to move this to the September 15th meeting.

[01:29:25] On field please say aye. Aye. Any opposed? That motion will pass 9-0. Thank you. Supervisors, I'd like to try to clear the room out a little bit so I know what was supposed to be next, but I do think most

of -- I think a lot of people in the audience are probably here for the -- for the Hamilton -- R&D Hamilton Academy.

[01:29:47] I see a lot of people in this room who look to be about, I don't know, 20 years old. I got a feeling they don't just want to hang out with support supervisors all evening. No, they might, because we might just be that fascinating to people who are 20 years old. Maybe, but I got a feeling we're not that fascinating to 20-year-olds and 25-year-olds and 22-years-old.

[01:30:05] I just have a feeling. So just for the purpose of cleaning the room out and such, I'm going to ask the applicants or the staff and then the applicants for the R&D Academy. So this is out of order, and I apologize, but it is my practice to try to clear the room up if I can, to come down to the table. Mr. Galindo, do you know if, if, is there, is fire and rescue here or will they be speaking on this application at all tonight or giving an opinion or at all? They are not, they are not and they will not. Okay, not tonight. Okay, cool. All right, wonderful.

[01:30:42] Hello, how are you? And we are ready for a presentation. All right, good evening. Good evening. My name is Matt Kessler with the Department of Planning and Zoning, here to present this application for R&D Hamilton Academy. Three additional comments since publication of the packet have been submitted, all in opposition to the application, citing concerns of scale and intensity, as well as site access. The subject property is located within the Catocin Election

[01:31:19] District on the south side of Route 9, Charlestown Pike, between Hampton Road and Hamilton Station Road. The site consists of approximately 21 developed acres of residential and agricultural land and is owned Agricultural Rural 1 or AR1. The application proposes three minor special exceptions to modify the use-specific standards for small business agricultural and rural use for the purpose of operating a baseball training academy. These modifications are to increase the number of employees permitted from four to eight, to increase the permitted structure area from 6,000

[01:31:55] square feet to 9,256 square feet and to reduce the 300 foot setback for three of the yards to 150 feet along the northern property line, 70 feet along the western property line and 54 along the eastern property line. The site is subject to several previous applications. In 2019 three special exceptions were approved for the expansion of an established livery stable use. This annotated Spexplatt shows the proposed layout of the business operations on the site. Parking for clients is

[01:32:32] located near the entrance of the property. Let me get the laser pointer here so I can point it out for you. Parking for clients is located near the entrance to the property. The entrance is located on the right hand side here off of Spruce Hill Lane. The parking is shown in red. Indoor training is proposed within the existing agricultural building shown here in blue near the front of the property. The hatched blue area adjacent to this building here represents the 7,200 square foot addition to the existing agricultural building. The existing single family residence shown here in yellow will be utilized for administrative and office functions associated

[01:33:11] with the academy. The outdoor training field located to the property here in green in the back is shown in green which I'll go into greater detail on the next slide. So here we can see the outdoor field exhibit. Home plate where clients will be batting from is located in the southwest corner of the property furthest from adjacent homes. There is approximately 500 feet to the opposite property line providing ample space for batting practice. Areas closer to existing structures are restricted from training use shown

in gray. It should be noted that all outdoor training is conditioned to utilize safety netting and to occur between the hours of 9 a.m and 6 p.m.

[01:33:51] Outside of those hours all instructional activities must occur inside to mitigate noise and disturbance and I will be discussing those conditions in greater detail. So the subject property is located within the rural north place type which envisions mostly agricultural and agricultural supportive uses with limited residential. However the place type guidance in the general plan is clear that non-agricultural uses may be compatible as well if they are provided at an appropriate scale and intensity. The proposed training academy use is not agricultural. However, staff recommends the following conditions to address this guidance from

[01:34:27] the place type. As the application requests modifications to three of the eight specific standards, staff finds it necessary to recommend a number of conditions to address compatibility and safety. In addition to the outdoor training regulations previously discussed, staff is also recommending restrictions on outdoor lighting, overall hours of operation, maximum participants, as well as other operational controls. One addition or one condition to highlight is the requirement for site plan review. During the application review process both the fire marshal's office and building and development staff identified important safety regulations that will need to be

[01:35:05] addressed. By requiring a site plan review process there are assurances that the proposed use will occur in a safe manner. Minor specs are not reviewed by the planning commission and proceed directly to the board staff could support board approval at this time provided that the recommended conditions of approval are adopted staff is available for any questions thank you thank you very much this is a mr kirschner's districts i will go to him first thank you madam chair i've got a couple questions i have been working with this applicant in my office and myself for quite a while it's been an ongoing project i'm when i get to the applicant i'll ask him how long but

[01:35:41] my i think it's two two and a half years something like that um because they originally started as a day camp and then it was discovered after three or four steps down the road that that wasn't that was going to work for them so they had to come back in for this minor specs um uh or for these these specs um you mentioned during your presentation that i think the you said that although generally can um this area is considered agricultural use appropriate scale and intensity for these other uses including i think sports for the this special exception what what can you kind kind of just give us a general thought on why you believe, because I think staffs are

[01:36:21] approving this, correct? Or that you are approved based upon the conditions of approval, right? And are those worked out yet, or are we still working through those? Correct. So the supplemental that went out has confirmed that the conditions have approved a legal form and are ready for action. So staff is now supporting this based upon those conditions of approval, is that correct?

[01:36:38] That is correct. Okay. So I guess in terms of guidance, just for general discussion, How do you kind of dictate, have you thought through this process in terms of appropriate scale intensity? Because I think maybe that would be some of the concerns that might be up here.

[01:36:56] But could you chat about that a little bit in terms of how you kind of came to that conclusion that this kind of fits under that? Sure. So in discussions with the applicant, they identified operational structure that would work for them. And staff has worked with the applicant to establish conditions related to hours of operation.

[01:37:16] As I discussed, timing as far as limits on outdoor training to minimize impact, they have committed to no exterior lighting. Those types of controls were things that were discussed with the applicant in order to mitigate scale and intensity.

[01:37:34] There's also a limit on number of participants. I believe the maximum is 80 per day with 30 at any given time, including coaches. That was another discussion that was had with the applicant to control intensity. So it was those types of use-specific standards.

[01:37:52] Okay. And my understanding, we have three specs here, is that correct? That is correct. And the first being from four to eight, which seems pretty reasonable in terms of employees, correct, at a time? That is correct. One is the additional size of the building, so we're going from 6,000 to 9,000.

[01:38:12] and can you go back to the screen that shows where that building is just and what is that bumping up against is that the main road where the entrance will be the blue you're referring to up here yeah the light blue that's checkered there correct that is at the the front of the property closest to the the access for the site and then the third if i recollect was a setback correct that is correct okay and where is that setback and i'm out of time so it's hard to see on this screen but there is a pink buffer around the site. So the use specific setback for this use is 300 feet. They are

[01:38:46] requesting 180 feet here from this front property line because of the existing stable that's being repurposed. They are requesting 70 feet again because of the the expansion here as well as the the outdoor practice field and then because of the existing home to the east this setback that's requested is 54 feet, I believe.

[01:39:09] So some of these are existing buildings, right? Mr. Kirsch. Slip it right in there. That's exactly my job.

[01:39:25] That's exactly my job. Mr. Crony. Thank you, Chair Randall. So staff originally at the June public hearing did not support the application, right? and now you do support it with certain conditions, am I correct?

[01:39:41] Because we had a June public hearing scheduled. That is correct. Yes, staff is supporting. Okay, but that's with a site plan, right, that they meet all the requirements of a site plan. So one of my main concerns, and I mentioned this to the applicant, is that private access road, the fire marshal has made it clear that that has to be improved, has to be widened. Right now it's just a one-lane road, and this is a commercial use. You know, what if the applicant can't get the required easements

[01:40:18] to do the widening and to do the improvements? Yeah, so that is something that will need to be demonstrated at time of site plan, which will preclude the building permit and occupancy so if the applicant cannot demonstrate compliance with all of those required access and safety standards they would not be able to operate. Okay so does it make sense then to approve without knowing if the applicant has the legal right to expand a private easement beyond the current width? I mean I've never heard of this before like I would think we'd have an

[01:40:58] answer whether they have a right to do it. So I would welcome Mr. Rogers advice on this as well But the focus here is the use itself, and so you're approving the use with the assumption that eventually they will be able to meet all the requirements that would allow that use to operate. The board's approval tonight would not guarantee that they can do the use if they cannot meet those other requirements.

[01:41:21] I just would concur with what Mr. Galindo just said. The approval tonight would mean they'd still have to meet all the requirements in order to open and operate. Okay, and then my second concern, and I mentioned this to the applicant, is the setbacks. You know, one area is 54 feet, right, from a residence.

[01:41:44] That's the western one or the one that's 54 feet? To the bottom of the page is the 54 feet. Yeah, that's pretty intense. And the square footage is increasing four times, is that correct, from what's allowed for a small business use?

[01:41:59] the square footage of all the, is it a four times increase of what's permitted for a small business use? That is correct. However, the use specific standards do encourage the adaptive reuse of existing agricultural buildings, hence the 9,000 square foot request in the minor specs. So while they are also proposing to utilize about 14,000 square feet of existing space, but per the zoning ordinance, that is excluded from what's counted. But it's 23,000 square feet, and it's supposed to be six. Am I correct with that? That is correct. Okay, thank you. Thank you.

[01:42:39] Ms. Glass. Thank you, Madam Chair. Why is this business being reviewed as a real small business and was not deemed as an indoor recreational sports business, which would not be allowed in an AR1 zoning district? So this use was identified previously as a personal service instruction use, which is one of the uses identified by this larger use category of small

[01:43:12] business, rural, and agricultural. When a personal service use identifies as this small business use, it is then subject to these eight additional use-specific standards that we're discussing this evening in order to manage the scale and intensity for the rural character.

[01:43:34] That just went right over my head. I mean, I can summarize it as it was the zoning administrator's determination when looking at the facts of what the business was proposing. However, we'd be happy to get back to you with more detail if we, if after all, everything tonight, you would still like some.

[01:43:55] Okay, thank you. And is staff concerned that there will be difficulty in getting fire equipment on this site? There's been robust discussions with the fire marshal's office regarding those standards, although that review and confirmation of compliance is typically done at a later time during the site plan process.

[01:44:22] So, you know, I would say major issues have already been identified for the applicant by the fire marshal office, and they have met to discuss those issues. But like I said, that will occur at a future date. Okay, thank you. Ms. Brickspin? No questions, thank you.

[01:44:40] Mr. Sainz? Thank you. Yeah, I'll continue from the question for Supervisor Taconi. So, correct me if I'm wrong, right now, they need permission, I guess, from a neighbor or neighbors to expand their property so they can get the fire apparatuses on the property.

[01:45:00] And as of right now, the answer has been no from the neighbors for the access. So, again, help me understand, if we had approved this, then they're supposed to still go try to work that out with their neighbors. And if that doesn't happen, then what happens?

[01:45:19] They would not be able to receive occupancy for these, so it is at their risk. So why is it the other way around for them to get the approvals first from their neighbors and then come to us? Well, it's a

possibility. This is being treated sort of in the same way that a by-right use would be treated.

[01:45:38] A by right use that wouldn't require coming in front of the board would still have to check all the same boxes after the use is authorized, in that case by right, in this case by board action, to make sure that it has all of the more detailed regulations satisfied in order to begin operation.

[01:45:56] Okay, and then currently I think they're operating under a temporary special event permit, is that correct? Yes. so so in theory hypothetically say if this is approved but they still get known from their neighbors can they just come back and keep applying to temporary special event permits to keep operating so temporary by their nature means that they at some point there's a distinction between something that's happening regularly um i'm not prepared right now to tell you where that line is drawn but at some point applying for the same kinds of temporary use permits over and

[01:46:32] over would no longer be approved. How many have they applied for and I remember approved for so far? So right now they have approvals through I believe through the end of uh 2026 at the moment. So they've only applied once? They applied once but they laid out their plan for the year in compliance with what the temporary special use permits allow overall. Okay so then can I once 26 it runs out can I apply in 2027 lay out my plan for 2027 get approval? They can apply yes beyond that i would hesitate to give you a direct answer tonight without there's going to be a number of details involved in looking at it just like there was when this initial permit was approved

[01:47:07] okay and then with the temporary special permit isn't it supposed to be 10 events or is it just unlimited for whatever amount of time we approve it's 10 events for up to two weeks at a time per event so every two weeks 10 events there has to be a break in between but each individual event so for each for 10 events in total each of those individual events can last for up to two weeks and how are we monitoring that we are monitoring per what the the application submitted um so there's no true enforcement because they could possibly

[01:47:43] doing going past that they could i mean as you're aware when if we receive a complaint we would go and check it okay all right thank you mr mr turner thank you madam chair so i just want to get the history um down so in november 7 2019 the board approved a request to expand an equestrian facility livery stable, including an outdoor, an indoor arena and a barn and a round yard. The very next date we have is July 10th, 2025, where the county issued a temporary special event permit for workshops and lessons for baseball athletes. That has nothing to do with the board approval in 2019.

[01:48:25] I'm concerned with the definition of special event. Special event tells me it's a special event somehow related to the underlying use on the property. Clearly, this has nothing to do with the original board-approved underlying use for the property. The special event permit was appealed, and the appeal was upheld, denying the special event permit and the extension that was granted on October 10th, 25.

[01:48:50] That, in turn, was appealed, and now another special event permit has been issued through the end of the year. We still haven't addressed the fact that they are operating in violation of fire code. The road—the access road does not meet current fire safety regulations, and the borders of the road are private property.

[01:49:09] The applicant, to my knowledge, has offered no explanation of how they're going to improve access to the road when the neighboring private property does not—is not going to give them permission

to expand the access to the road. Not to mention the fact they've now been operating for a year, contrary to our zoning ordinance.

[01:49:26] And I'm sorry, I'm a little defensive here because we've spent the last two years in Walrus talking about people operating in Western Loudoun in violation of zoning ordinances. And yet it appears to me, at least circumstantially, that this is not at all what the intended use of the property was and that the applicant knew from the very beginning it was not going to be what the intended use was.

[01:49:47] In addition to which, my understanding is the residential building on the property is operating as a business right now, and I don't have any idea whether those permits were issued were legitimate. So I have some real concerns about how this whole thing has evolved, and I'm really disinclined to approve this because of the way it's been conducted thus far.

[01:50:07] Thank you. Thank you. So all of my questions will be to the applicants, so I don't have any questions for staff. Thank you. You guys ready? okay um so welcome you have 10 minutes uh you can stand up at the podium or sit down and we are ready when you are good evening my name is robert riley i'm the co-founder and co-owner of r&d baseball academy i'm here tonight representing my wife stephanie our twin boys leo and garrett they were just four and a half years old when we purchased this property last month we celebrated

[01:50:45] their seventh birthday hold it just one second so we may start your time over because your presentation is not showing we want that to show as you as you speak so just give us a second sorry this time over please i apologize give us one moment chair i know we need to pull up the

[01:51:09] presentation it's not open so i hear you know the two boys that just got drafted know them very well i've trained them for a long time wow last three years just now amongst others cool all i know about baseball and all i know about baseball in the whole world is two kids Tom Loudon just got drafted.

[01:51:43] That's my full baseball knowledge right there. Sure did. They worked hard for it. I know one of their dads real well. We have another one in the audience crafting the fourth round. Oh, really? Robbie Lady, raise your hand. What? San Diego Padres.

[01:51:59] What? Wow. Go Loudon County. Congratulations.

[01:52:17] You need to take a quick break and come back. We can do that. Yes, ma'am. Okay, let's do that. Let's take five minutes and come back.

[01:52:32] I do apologize, but let's take five minutes and you will have your full 10 minutes.

[01:52:35] I want to start, but I want the district supervisor out here because it's his district.

[02:00:05] So, yeah, thank you. Can you go grab Mr. Kirshner, please? Thank you. is anybody else absolutely freezing i am free like like shivery freezing up here no gee man like literally the entire county is waiting on you everybody everybody is your district man

[02:00:42] all right thank you for being patient you still have your whole full 10 minutes and we are ready when you are sir my name is robert riley i'm co-founder and co-owner of r&d baseball Academy. I'm here tonight representing my wife, Stephanie, our twin boys, Leo and Garrett. They were just four and a half years old when we purchased this property. Last month, we celebrated their seventh birthday. On behalf of our dedicated and passionate coaching staff, building young families of their own, to our athletes and

families, we serve across every district in Loudoun County. Since founding R&D Baseball in 2012, our mission has been simple, to use baseball

[02:01:17] as a vehicle to positively impact young people. And over the past 14 years, we've helped hundreds of athletes continue their careers at the collegiate level and more than 30 homegrown players reach professional baseball, including three current major leaguers. Earlier this week, six more R&D athletes, including Loudon's own Ryan Marone and Kyle Johnson, were selected in the 2026 Major League Baseball draft, realizing their lifelong dreams and demonstrating what can happen when young people are given the opportunity to develop in a positive environment. We're incredibly proud of those accomplishments, but most importantly, our mission is helping young people develop discipline, a strong work ethic, and the confidence to overcome challenges,

[02:01:56] qualities that will serve them for the rest of their lives, regardless of where baseball takes them. Those principles are reflected in the four core values that guide our organization every day. Integrity, grit, expectation of achievement, and collaborative innovation. Like many businesses in our industry, we operated out of warehouse space for years. We learned our facility in Herndon in 2022 would be redeveloped into data centers. And as industrial space became increasingly scarce, and increasingly expensive due to the data center boom we were forced to rethink our future and what we found wasn't simply a new location instead we found an opportunity to create something truly

[02:02:35] special this 21 acre property would allow us to create a permanent home for a youth development program centered on athletics education mentorship and community while helping address the growing need for athletic field space in Loudoun County. It has now been 31 months since our December 2023 pre-approval meeting when we were encouraged by staff to move forward purchasing this property and establishing that permanent home. At that time, we believed there was a clear path forward because from our perspective, this was not a complicated request. We've worked in good faith

[02:03:10] with engineers, planners, consultants, and multiple legal teams through every step of this county's process. Time and again, experienced professionals have expressed surprise at the level of scrutiny and procedural complexity surrounding what they believe should be a straightforward application.

[02:03:26] We've completed multiple rounds of review, I believe five total, and invested more than \$2.5 million pursuing compliance while navigating multiple shutdowns, redundant resubmittals, and continued operational uncertainty that has put our small business at significant risk, while we are still trying to figure out where the finish line actually is.

[02:03:47] We are not asking for special treatment. We're simply asking for what every applicant should reasonably expect, a fair process, clear expectations, consistency, and a defined path to completion. Despite every challenge we've faced, our belief in this vision has never wavered.

[02:04:06] We remain committed to being good neighbors, responsible stewards of this property, and positive contributors to Loudoun County. The families seated behind me tonight support this vision because they have seen firsthand the positive impact R&D has had on their lives. They understand this application is far more than permits, buildings, or baseball fields.

[02:04:24] This is about creating opportunity. Years from now, very few people will remember this hearing. But thousands of young people will remember a place where they learned leadership skills,

accountability, and perseverance. And they will remember the adults who believed in them. That is the legacy we're asking you to help make possible tonight.

[02:04:43] On behalf of our entire R&D family, we respectfully ask for your support and approval of our minor special reception application. We believe this proposal is reasonable, responsible, and will create lasting value for Loudoun County and the families we have the privilege to serve. Thank you for your time, your consideration, and your service to Loudoun County.

[02:05:01] I'll now turn it over to our council. Shane Murphy. Good evening. Thank you. Thank you for that, Rob. Shane Murphy with the law firm of Miles and Stockbridge. I'll get through this as quickly as we can. I just wanted to highlight a few things on the zoning front. First off, this is a 21-acre property.

[02:05:18] There was a special exception dating from 2019. That special exception was not assumed. The use was not assumed, and so it became dormant. However, they did have the structure constructed when my clients purchased the property. I just want to kind of clarify, personal instructional services, which I have the definition of if anybody would like it, we do meet that definition.

[02:05:42] It is a by-right use. The use itself is by-right in the AR-1 district. The reason we're here tonight for a minor special exception is for three items related to the use. The number of employees is maximized at four under the ordinance.

[02:05:57] We're asking for eight so that we have better ability to manage the conditions and manage the players. The increase in the structure size from 6,000 square feet to 9,256 square feet and the reduction of the 300-foot setback in favor of what the originally existing structure was.

[02:06:14] It's been changed a little bit in the attempts to try to get this through the process, but they would like to go back to the way it was when it was purchased. And there is, per staff's comment, there is a preference that these things be repurposed when they can instead of picking it up and moving it.

[02:06:31] So just to kind of go through this, they have personalized instruction, which requires additional staff. Taking it from four to eight staff members would allow them to also monitor the development conditions better. They've agreed to limit the number of students on-site to 30, with a maximum of 80 on-site over any given 24-hour period.

[02:06:52] So your maximum on-site between students and staff would be 38. Again, with the personal instructional services as a by-right use, there is, to my knowledge, no limit on number of students. So this was an attempt to get to a good-faith compromise with the community and the neighbors, many of which support what's going on here.

[02:07:12] Again, this is a picture of the arena and the reconstruction of the arena would go back to just the way it was when they purchased the property two years ago. Reduction in setback, we have actually reduced the reduction in setback on the north side to 150 feet instead of the previous 54.

[02:07:37] That was something we were able to do just based on measurements and based on the structure. And again, reconstructing the structure as it existed when they purchased the property. Just to kind of see if I can address a couple of, before I run out of time, a couple of the items that came from the dais earlier. Again, we are by right.

[02:07:54] I've got the use definition. It isn't the zoning ordinance. The Board of Supervisors approved that in 2023 when they revised their ordinance. That's a, to my knowledge, a new definition. It's a new use. The

Board of Supervisors did approve it as a by right use. As to the easement, our position is that we have everything we need for that easement.

[02:08:13] We have a recorded easement. It's been there for over 50 years, and our belief is that we have everything we need. There is litigation, I will disclose. One of the neighbors has sued us over that easement, but our position is that we have the easement. And I've never had a situation where a government body has turned us down based on a recorded easement.

[02:08:34] If a judge happens to say something different, obviously that's what goes. And just to tag on to what Mr. Rogers said, that's usually something that's worked out at the time of site plan, and that's been our commitment. As far as the fire marshal, that's kind of looped in with the easement requirement, and the fire marshal will have certain requirements that will be taken care of at site plan.

[02:08:59] As for the, there's one notion that I took a little bit of umbrage to, which is the notion that we are somehow violating the ordinance. If there has been any sort of violation, it was unintentional. You know, you've got a small business, sometimes not everything is done perfectly. I'm not saying there was any sort of a problem, but I think the intent has always been to follow the ordinance.

[02:09:20] They got one interpretation early on, that interpretation kind of changed in terms of what their use should be, and they've kind of gone with the flow as much as they possibly can. The temporary special use was a zoning ordinance permitted way of getting them into the property so that they could begin doing this use on a temporary basis.

[02:09:42] You know, it did not presuppose that this would be approved. But on a temporary basis, while this went through the process, it is permitted under the ordinance. You've got all sorts of agricultural uses that do that all the time, from wineries to event places.

[02:10:01] It's done all the time, and it is a temporary use, and it doesn't mean to Mr. Glendo's point that it will be approved if they apply again um we the board of zoning appeals did uphold the issuance of that so we are good to go until the end of 2026 with that regardless of what happens with the special exceptions tonight um and again i just there to our knowledge has been no violation we are trying to do this four square within the ordinance and we do have that use that personal instructional services use that we are relying upon and I can certainly go more into the definition of that if anybody would like but I certainly don't want to go beyond

[02:10:39] my time so I'd be happy to take any questions anyone might have thank you before I go to mr. Kirsten for the first question I just have a clarifying question that might guide the conversation says we'll make sure I get it right will you go back to slide 10 please because I'm not quite sure if If you're doing at this point the 6,000 or the 92, 90, 90, 92.

[02:11:02] Yeah. So 92, 56 was, was the original size of the building. They, they cut it down trying to get it within one of the, but what are you trying to do? They're going to go back to that 92. Okay. So they're going to put it back the way it was. It's the original. Okay. Thank you. Thank you very much. Mr. Kirshner.

[02:11:17] Thank you, Madam Chair. And I just a couple, I'm going to fire away and I'll let you guys answer some of these questions, but so just go back to the building since we're on that at the moment originally you'd come in with the understanding and i understand we don't have to get in all the history but there was a bunch of confusion on either side i know council wasn't involved in at that time but i was involved in at that time and i'm very familiar with what was going on we don't have to point fingers here or there but just

suffice it to say and you can shake your head yes that it turned out the staff said you can't be a day camp and and so there you know after a bunch of going back and forth on that and multiple meetings etc we started going down this

[02:11:54] route to get these special exceptions is that correct yes but during that process we in order to come into compliance be a day camp we ripped some of this building down that already existed correct yes sir so now we got to build it back and then ask for a special exception under this zoning is that right yes i got that in a nutshell so it's it's it's needless to say it's been a little bit of a frustrating process and i really feel bad for the applicant here because you guys have you have gone through a lot you know whether it's some of your fault or not it doesn't really matter we are where we are and i want to be able to get this business up and going if indeed we can get everything and satisfy the board members that are here. You are coming under the small business

[02:12:29] provision, correct? And the way I read it, it says giving instructions in music, drama, art, dance, martial arts, or sports. That's what you're doing here, correct? You're giving instruction in sports. Okay. Can you tell us a little bit about, and you mentioned, I think earlier, you've spent over \$2 million trying to get to this point. Is that correct? Which is just shocking to me.

[02:12:53] It's in total expense with what we've had to endure to keep operations running, get a satellite site, spend – I don't even want to go into how much we spend on multiple legal teams and resubmittals or tens of thousands of dollars for civil engineers and legal fees and county fees.

[02:13:10] Yeah, and that's just a yes or no. I don't have much time. Yes, sir. Yes, sir. Sorry. So going to this building again, one of the specs is basically to allow you to build back the building and keep that buffer, correct? Correct. So, literally, that building already existed and was in use and being used internally.

[02:13:27] And then the other is eight employees. And then the final is the setbacks. Can you talk a little bit about those reduction of setbacks other than the building? The reduction of setbacks, I mean, so the setbacks for the previous use were different.

[02:13:43] I guess it was a different footage. And it's 300 feet for this particular use. And so that's how the setbacks got to be an issue was that with the use, with the change in use, the change, the setbacks change as well. The, I would assume when you go through the process of the site plan, that indeed you will be working with a fire marshal to come into compliance, whatever requirements they have.

[02:14:07] You believe you have the necessary easement, is that correct? We believe we do, yes. And as your understanding as a county attorney, and I think as staff mentioned, that is the normal process, correct? That is, yes, sir. Okay. Just to answer some of my colleagues' concerns that were brought up here. I'm out of time, but thank you. You will have time in a motion.

[02:14:23] Would you make a motion and you have opening and closing in a motion? Ms. Bricksman? Ms. Bricksman? Is she still on? Okay, we're going to...

[02:14:42] Ms. Bricksman, if you can hear us, I'll come back to you. Mr. Crony? Yeah, thank you, Chair Randall. And Dan, thank you for the opportunity to meet and discuss the process and what you've been through. Have you already put in all the building codes and fire safety codes?

[02:15:01] I think you said you had done that, correct? We've done as much as we've been instructed so far. It's not clear exactly what we're going to need to do in the site plan process. Okay. Because it did start

as a stable, which, of course, didn't have any of those. It was a riding arena.

[02:15:16] A riding arena, yeah, which would not require that. And you said you're going to put in a separate septic system and well for the commercial use. Yes. not that's separate from the residential, right? Correct. Because I know there's a residential building there. That's right. Okay. Do you think you have the legal right to expand a private easement beyond the current width to accommodate your business on a private road?

[02:15:43] So there's the question of the current width. Our view is that the easement allows wider than the current width of the existing roadway. So, yes, we believe we have enough to get to where the fire marshal wants us to be, but obviously that will be done during the site plan review process.

[02:16:01] Okay, because it's a one-lane road now, and I think the fire marshal was asking for a two-lane road, am I correct? Correct. So it would be a substantial expansion. I know that there's a property owner that's really right next to that access road, you know, along Spring Hill Lane.

[02:16:23] that would be really impacted with the expansion. So I'm just wondering if you've reached out to any of your neighbors about that. We don't know exactly what we have to do with this road yet, so there's been no interaction aside from the improvements we've made thus far on the road.

[02:16:45] Let me address, I'm sorry, the question of whether they've reached out to their neighbors. I'm pretty sure almost all their neighbors are here tonight. There's a couple that oppose it, a couple that support it, who also access off that easement. I don't believe Spruce Hill Lane is the one that's being. It's the new road name. Okay, so Spruce Hill, I'm sorry, Spruce Hill, I was thinking of the other side.

[02:17:05] So, yes, there are several properties that access off of that. Some of them support it, some of them oppose it, but the access is a legal right that, in our opinion, has been granted and is in the land records that permits them to do this.

[02:17:21] There's lots of easement fights that come up in courts all the time. And, again, this one's over 50 years old and has been used for almost that entire time. Okay. Would you be willing to meet with some of the neighbors? I mean, I'm wondering because it looks like you haven't had a meeting with the neighbors yet.

[02:17:37] Oh, we've met every neighbor. We met all the neighbors prior to purchasing the property, explaining what we're going to do, you know, trying to mitigate any concerns anyone might have, open a line of dialogue. Some have chosen to vacate that and take other measures to block us, and the rest have been very supportive.

[02:18:00] But we remain open to the dialogue we established from the get-go. Okay. Thank you very much. Thank you. Ms. Brixman, are you on? I am. Thank you, Madam Chair. I do not have any questions for the applicant. Thank you.

[02:18:16] Okay. Mr. Letourneau? Thank you. All right. So I've been a baseball dad and coach for a long time. The facility, I kind of knew you guys as a pitching operation, which is mostly indoor. So, walk me through a little bit, because when I look at kind of what you're advertising and stuff, it looks like it's mostly an indoor use, like you'd see at some of the other facilities around, but you're planning to build the outdoor field that's not there now?

[02:18:44] That's correct. Yeah. Okay. That's the vision, yeah. So, you would be doing then both indoor and outdoor, depending on seasonal kind of stuff? Yeah. Potentially both at the same time? Mm-hmm. Okay. And what's sort of the maximum per group that you have at any given time there?

[02:19:02] The condition proposed is 30 people at one time and 80 people for a day. And that's seven days a week? Six days a week. Six days a week. Okay. All right. You haven't built the field yet, though, right? Okay.

[02:19:18] So the idea is to take this building here and convert that into the indoor training facility? That's been done already. Already been done. Yeah. At what sides, though? the original size or the 6,000 the original size was 20,000 square feet it's now 12,000 square feet okay where's the 9,000 feet coming we reduced that to comply with the day camp use previously okay so is this is this as big as it's going to be right now then we would like to expand it well we'd like to put back up what we took down the 3,000 square feet that was

[02:19:55] that was 7,200 square feet. Okay, I'm getting confused on the math, I can deal with that. We took a large chunk of the building off to comply with the previous use. It was 20,000 square feet and now it's 12,000. What's confusing me though is the request to go from 6 to 9,218. So okay, so the total square footage allowed for this use is 6,000 square feet.

[02:20:20] There's a home on the property, a dwelling that we would like to use for the business, that's about 2,000 square feet and then the uh resurrecting the 7,200 square feet uh zoning included that in the in the ask and that pushed us over the 6,000 square foot minimum the the remaining the the existing structures the stable in the arena are uh grandfathered over so they're not counted on that 6,000 square feet okay maybe it took me a while to understand it too yeah okay

[02:20:53] all right i think that's it for questions thank you mr saints thank you all right so the hypothetical we go through this process you get approved you're currently if i heard you correctly you're going through court regarding easements if this is approved you're supposed to still work out site planning get the easement so you can do the whining for the fire marshals requirements so again if the neighbors continue to say no then what are you going to do well it's

[02:21:28] Our position is we have a legal right to that easement, and so it'll be a judge that makes that decision, ultimately, unless there's a settlement. And where are you at in the court proceedings? Well, they've filed, so we're basically at their mercy.

[02:21:47] We have not had a court date scheduled yet. Okay, so say if that's two years from now, three years from now, I don't know. Mr. Kirshner can answer that question better than I can, I guess. how fast people are getting docketed. But say if that's a long process, and you can't, are you gonna cease operations?

[02:22:05] Are you gonna apply again for these temporary permits? - And again, Supervisor is saying, our position is that we have the right until somebody tells us we don't. That's the way the land records typically works. If you've got a deed in the land records, you can rely on that. - But again, in this circumstances, if we approve it, but right now you don't have the easements, you don't get docketed. - You do have the easements.

[02:22:26] Well, the fire marshal is saying they can't expand the road. Mr. Supervisor, let me see if I can. We believe we have the easements. The easements, we believe, are not constructed to the full width of the legal right that we have. And so the fire marshal has asked to upgrade the road.

[02:22:44] And so the thinking is that we would do that during the site plan process, which is one of the conditions that's in there is we have to go through it. You don't always have to go through site plan in these agricultural areas, rural areas. We have a condition that requires us to go through that site plan, and the fire marshal at that time will come up with that answer.

[02:23:05] But again, just to repeat, we believe we have the legal right. That's something that will be discussed by the court. I can't really get into the details of it except to say we have a deed book page, a number that says we have an easement, and we're going by that. All right, say it again, but would you keep filing those temporary permits if you have to?

[02:23:24] You know, I mean, the reality is we've got until the end of 2026. Okay, yep, that's 2026. That would be a business decision. Like, we don't know. Like, this process has been going on and on for so long without any clear end, and we've constantly had to adjust.

[02:23:42] So that would be another case of us trying to figure out what the next step is for our business. Right. I don't think it's really the fire marshal that would drive that so much as just the site plan process. The site plan process can be very long and drawn out. sometimes excessively so. And so it's just, it's how long it takes us to get through that site plan process. I think that'll determine whether they'd have to think about filing another temporary permit request. All right. Thank you. Thank you. Mr. Turner. Thank you, Madam Chair. Let me say at the outset, everything I've heard about the Academy is that you guys do terrific work. So I

[02:24:18] don't want to, please don't misunderstand from my earlier comments. We've just been round and round and around for two years on zoning in the West and compliance with zoning in the West. So I'm pretty hypersensitive about that. But I did not in any way, shape, or form mean to impugn the quality of your work.

[02:24:34] The quality of your work, I think, stands on its own merit, and it's laudatory. It's terrific work. Staff, so your position is, if they meet the conditions of the site plan, which includes road access and fire code compliance, that you believe this is a permitted use on this site?

[02:24:59] That is correct. Okay. Somewhere I heard current traffic is 20 cars a day, and it would expand to 100 cars a day, and I cannot find that anywhere in here. Can you speak to that? Is that actually? So there's, I think what you're hearing that from is from the opponents who say, okay, we counted X number of cars per day and there's going to be more.

[02:25:21] There would have been more cars going down the road if the specs for the library stable was there's no limitation on the easement as to number of cars a day and typically a court will say that unless you've put a specific limitation of that easement it can be as many cars as it wants or needs to be but I do believe there was a traffic study that actually Dan if you can Yeah, it was determined that we would have 196 vehicle trips per day at a peak over the course of a day.

[02:25:56] 196? Yeah. Okay. Yeah, and it was determined that that was, it did not trigger any kind of improvements on Route 9 or it was well below what the threshold is for that, that type of road. They didn't require the formal VDOT studies.

[02:26:12] Okay. Okay. So right now, everything hinges on the site plan acceptance, which is going to include a condition of being in compliance with fire code, which is basically the easement and the size of the road.

[02:26:28] Which is the normal way it works, right? I mean, in almost any special exception or any rezoning, the next thing you do is go to the site plan process. And then, you know, sometimes, as you may know, they come back with interpretations and that sort of thing because, you know, but that's that next step in the process that, again, you don't always have to go through it in the rural areas, but it is the next step in the process.

[02:26:48] So it's kind of the normal way of doing things. Okay, real quick, before my time runs out, staff for you, the applicant has at least inferred that there were implied there were a lot of starts and stops and false starts. Can you speak to that, the concern that there were a lot of, okay, now you've got to do this when we didn't know about that the first time, and back and forth and back and forth.

[02:27:13] Can you talk to that at all? And that's a really subjective question. So I'll try to keep it as simple as possible. The applicants pursued the day camp use initially at their own choosing, and that would be a by right use, and they were working towards complying with that through the administrative process. The zoning reviewers on those first two submissions requested essentially verification of what the use entailed so we could determine that day camp was correct.

[02:27:38] The zoning administrator has now determined that it is the personal instruction use that's being pursued, and because of the limitations on that, even though that is by right, there are certain limitations on that that the business is trying to expand beyond what is allowed by right, hence the special exceptions that are before you.

[02:27:56] Thank you. So, I'll ask all the questions in just a second, but I do want to say as somebody who has spent years as a mental health therapist and working with young people, to have young people not on their devices, not doing things they shouldn't be doing, but in a facility where they're getting not just instruction but encouragement and getting community is just so huge.

[02:28:30] And it's what we talk about all the time, everything from adolescent anxiety to adolescent diabetes to all of it, that happens because our kids are, one, not active, two, believe social media is community.

[02:28:47] it is not social media is not real um it's not not for young people it's not a real thing for young people those i mean yeah you can have 500 friends but they're not your friends for real right so to to be to have a community like this is pretty phenomenal and and i want if for no other reason i want to try to get to yes for that because i know otherwise what young people could be doing. And every time our young people do something they shouldn't do, we talk about it and talk about it. It's on the press and all the things. And when they're doing these types of things, we really talk about it at all, and we really should. So I just want

[02:29:25] to say that first. Oh, oh, oh, I'm so, okay. We don't do clapping in the boardroom, but we do jazz hands, but thank you. I am a little confused by the number, and this is for, I guess you all, but by the 30 number that you've limited to 30. Is that by some, Dan, some zoning determination that it has to be just 30 people? Because if it's about the number of cars on the road, they can carpool, and there could be more than—I mean, if the number of 30 people, kids there any one time, it's because you don't want to have that many cars on the road. Is that the

[02:30:04] issue, or is it the issue they can't have more than 30 kids on the site at one time? How did we get to 30 kids who who decided what that yes yeah that was a balance between uh cars on the road and and

capacity um that made sense for the business and kind of typical peak time so it was a balance of managing the car flow and okay so that makes sense for you all that number does okay my other question is when we get to the place for fire and rescue real way in how long would that how long could that take? Because that is my, that is really, that is my, the only concern I have,

[02:30:44] is fire and rescue being able to get through the road if needed. How long could, you know, we do the temporary and we wait to get the site, how long could that take for the fire and rescue to check that out? Are you asking how long it would take for fire and rescue comments on the site plan? Yes, on the site plan. I mean, they would be part of the first referral comments on it. And I would guess that the applicants have probably heard most to all of what they could expect to hear whenever it gets to that point. But within 30 days of the first submission, they would hear from. Oh, so really quickly. Very quickly. Okay. Very quickly. That's great news.

[02:31:18] Okay. Thank you. Thank you all. We have quite a few speakers. Do we have any more speakers down there, Jenny? Are we good? We have quite a few speakers. I think we have like 21 speakers on this item. So I'm going to call your names in advance. When you come up, you have two minutes. You can use either podium. When your time is up, please yield the podium to the next speaker.

[02:31:37] Joseph McDonald, Kathy Lazarus, and Stephen Price are the first three speakers. Good evening, sir. Good evening. My name is Joe McDonald. I'm a teacher and head baseball coach at Independence High School.

[02:31:55] I'm also the parent of three sons, ages 22, 21, and 17, all of whom have trained at R&D baseball. My oldest trained there from age 13 through 20, and my younger two continue to train there today. R&D is much more than a baseball facility. It's a safe, structured environment where young athletes learn discipline, accountability, confidence, and the value of hard work.

[02:32:15] For my family, it's been a place where my sons have built friendships, found positive role models, and grown both as athletes and as young men. What truly makes R&D special is the people. Rob, Dan, and their staff care deeply about every athlete who walks through their doors. Their success isn't just measured by the number of players who go on to play college baseball or get drafted professionally, although many have.

[02:32:37] It's measured by the impact they make on young people's lives. I'd like to share one example. About 10 years ago, a young player in our local Little League suddenly lost his father. Overnight, the person who introduced him to baseball and supported his dreams was gone. I reached out to Rob and Dan on his behalf and asked whether they would consider helping him with training costs.

[02:32:57] Before I could even finish the conversation, their answer was an immediate yes. That young man later found success playing college baseball. But that's not what matters most. What mattered was that after losing his dad, he found a place where he belonged. For a couple of hours each day, he could focus on something positive, be surrounded by people who cared, and simply be a kid pursuing his dream.

[02:33:21] That's the human side of R&D. That's what makes it different. I've known Rob and Dan for nearly 20 years. I've watched them build something truly valuable for Loudoun County. Along with their staff, they have created a resource that benefits not just athletes, but entire families.

[02:33:36] Loudoun County needs R&D baseball at the farm. This is more than a business, it's a community asset that positively impacts hundreds of young people and their families. I respectfully urge

you to allow R&D Baseball to operate at its new location so they can continue serving current and future athletes for years to come.

[02:33:55] Thank you. Thank you, sir. Kathy Lazarus, followed by Stephen Price. Good evening, ma'am. Good evening, Madam Chair and Board. My name is Kathy Lazarus. I'm here on my behalf and my husband's behalf as the neighbor to the west of R&D Baseball.

[02:34:13] Specifically, our property line is the closest to their structures, and we're specifically the third special exception that you're talking about this evening of that large blue structure on the presentation. We have no issues with that structure going back to the size that it was before.

[02:34:32] So this is our third county hearing to support R&D. We have no issues with them operating as they have for the past two and a half years. They are excellent neighbors. The location of our house and property is more exposed to R&D's operations than many of our other neighbors.

[02:34:49] The front of our house overlooks their parking lot and structures. We're closest to the 9,000-foot structure and have no issues with it. It used to be up at that size. We would be thrilled to have it back up and enclosed the way it was before.

[02:35:05] There's minimal noise. weedbacker and lawnmower make more noise than their entire operation. Sometimes there are a couple of their clients who throw baseballs back and forth. The sound of the balls hitting the glove is a nice happy sound. They also talk to each other probably about life. Their clients are polite and courteous when we encounter them on the drive. We do not have any privacy concerns. Dan and Tom have acted honestly and in good faith as neighbors. They've already widened the drive. They've updated and replaced mailboxes they've offered additional landscaping and they've proactively given this notice and worked with all of us neighbors for fire access

[02:35:44] when my mother-in-law lived with us the fire was the fire trucks were able to come three or four times to our house without any issues down that drive Dan and Tom have operated the property for 2.5 years they have worked really hard to work with the county and have acted in good faith by also cutting their building partially in half and hoping to put it back together. We strongly urge the board to approve these special exceptions so that they can continue their business with certainty. Thank you.

[02:36:13] Thank you. Thank you. Stephen Price followed by Mitchell Turner. Good evening Mr. Price. Good evening Madam Chair, ladies and gentlemen of the Board of Supervisors. I'm Stephen Price, the law firm of McCandlish and Lillard and I represent Thomas Giddings and Stephanie von who live on Lot 1 of the Allen Family Subdivision, which adjoins the R&D property, but the R&D property is not a lot within the Allen Family Subdivision. The Allen Family Subdivision was created with three lots, two of which are served by this private easement called Spruce Hill Lane

[02:36:52] 30 feet in width. The documents which established the subdivision did not grant any authority or privilege to the R&D lot to use Spruce Hill Lane. I've practiced law in Loudoun County since 1977 and I've spent hours examining the land records dealing with this and there is no grant whatsoever in the land records of granting R&D, that property, to use this easement, Spruce Hill Lane.

[02:37:27] And so I would suggest to you all, you're asked to enact legislation, and it would make no sense I would submit to you all to enact legislation before you know whether or not the access on which this application is predicated actually exists.

[02:37:55] I've submitted a memoranda to you just briefly, and I attached a copy of the Allen Family DEDA subdivision. And you'll see that in it, it only grants an easement to lots one and two of the subdivision, not the R&D parcel.

[02:38:12] And why do my clients care about this? And let me say I'm representing them also in the land records. And that is they do not want 196 vehicle trips a day going down the driveway next to their house. So I would suggest that this issue be determined before any legislation is considered.

[02:38:33] Thank you. Thank you, sir. Mitchell Turner, followed by Thomas Giddings. Good evening, sir. Good evening. Thank you for the opportunity to address you.

[02:38:50] As a neighbor, I live on Route 9, so the traffic, it all goes right by my house. the not affected as much by having that building there and unfortunately it saddens me to see the conflict and we've done what we can to try to work with everybody and and encourage them to to come together. Dan and Rob the owners have from the very time they came in they they come to me and my wife and said you know you're you're there at the front

[02:39:27] and you own that piece of property right in the driveway what can we do to make this work we will plant trees we'll take away trees improve the view widen the road make traffic better they've done they replaced all the mailboxes so they were set back and and and could deal with the wider road so they they have done everything they can to be good neighbors I know they've so also worked with the county as much as they can and so I just speak on on their behalf not on one side of the other but just to vouch for the fact that they

[02:40:02] have tried and and want to be very good neighbors the other aspect of this is as long as that big barn is there blocking certain properties views there's going to be contention and the thing the sad part about it is once that that exception was approved in 2019 that set us up for ever but as I hear Supervisor Turner saying no relation the the about a lot of the things that come before you somebody's gonna use that barn they're not just gonna rip that down that's part

[02:40:40] of the property now so that properties is never gonna be solved and friendly neighbors who have a good purpose using that that property seems to be a good thing to do. Thank you, sir. Thank you. Thomas Giddings followed by Stephanie Van Priet. Good evening, sir. Good evening. My name is Tom Giddings and my wife and I live next door to the R&D property and their traffic uses our property to access the public road. So we are very directly impacted by this application. Notably, the owners of R&D Baseball do not live on their property, so their

[02:41:18] families are not similarly impacted. I first want to acknowledge the employees and clients of R&D Baseball. By all accounts, this business provides rewarding experiences for those who work and train there. When we first spoke with R&D co-owner Dan Olds back in January 2024, we were happy to learn about his baseball-themed day camp. It was described as a modest operation. We welcomed it and even lobbied our neighbors to support it. But the scale, intensity, and level of activity of the proposed business have grown astronomically since those early conversations. It is now an order of magnitude bigger and busier than baseline small business use it purports to be. And as it turned

[02:41:58] out, it is just a well-established, large-scale business that outgrew its commercial space and is seeking to expand in an agricultural rural zone. And to your point, Madam Chair, no, this is not what we expected next to our house. The scale, intensity, and amount of on-site activity are a continuous

disturbance to our peaceful rural setting, but the proposed traffic on our shared one-lane access easement, 200 vehicle trips per day on a road that has a carrying capacity of 70 vehicle trips a day total, that would not only cause congestion and property damage, it creates a serious safety

[02:42:33] hazard along the lane and at its junction with Route 9. As troubling as this application is, what is perhaps more disturbing is that the county has refused to respond to neighbors many complaints on this property for over two years. Look the other way as R&D converted a horse riding arena into a commercial sports training facility without permits or misusing residential building permits and allowed R&D to operate a non-conforming non-code compliant commercial business for over a year without a permit or through the abuse of the temporary permitting process. This situation really deserves some attention but today we urge the board to either reject this application or send

[02:43:12] it yeah your time send it back okay for some review thank you thank you sir thank you thank you um stephanie van um i think it's priet and you will be followed by joe corrode good evening good evening my name is stephanie van prate my husband and i live next door to the r d property we are very concerned about how this project directly involves the use of our own property for vehicle access will cause traffic safety risks threaten our wells do value our homes and degrade our quality of life we live off a single lane gravel driveway that is used by five properties and which gives us all

[02:43:51] access to route the public road route 9 all of R&D's traffic must cross our property and two others per Loudoun County standards the lane was designed based on 10 vehicle trips per day per property R&D proposes 200 vehicle trips per day for their business alone. R&D's traffic has already caused significant damage to property along our lane and a continual disturbance to the peaceful rural residential setting, but the far more serious concern is over safety. Hundreds of additional vehicles up and down our narrow gravel driveway creates an obvious safety hazard along our lane, which doubles as a walkway and at its junction with Public Road Route 9. The lane was simply not designed to handle anything

[02:44:31] close to that amount of traffic r and d's three minor special exceptions are not minor or justified there are homes across every lot line for which major setback reductions are sought their request extensive square footage to include a house in outdoor area they are using the property solely for a commercial use as the owners do not live on the property and by doubling the number of employees and allowing 10 times the number of on-site vehicles this clearly indicates it is not a small business and not compatible with the location placing such a high traffic commercial business in this location is not just irresponsible it's reckless and deeply concerning

[02:45:06] this has been very stressful we have been disenfranchised from this highly irregular process and feel that no one is representing our interests and those of our neighbors dealing with this has been costly and time consuming it has taken us away from our own lives our work family and friends i respectfully ask the board's supervisors deny r d's application and direct them to relocate to a commercial zone where their business belongs thank you Thank you, ma'am. Thank you. Joe Corrode, I think that's how I say that. If I don't, I apologize. Followed by Rosemary Olds. Good evening, sir.

[02:45:44] Hi. Yeah, I'm Joe Corrode. I've lived on the same road, two houses from the subject property since 2014. I'd like to provide some context. In 2019, Aurora Farms obtained approval for a 20,000 square foot indoor dressage facility.

[02:46:02] That application was opposed by the same appellants. In my view, the opposition was not tied to a particular use, but rather to having a business use on the property. Given the existing building and

infrastructure, the property will almost certainly continue to be a business use.

[02:46:19] The question is, what use is best for the community? The appellants have previously opposed equestrian use of the property, leaving alternatives such as event center, winery, commercial operation, or future residential development. In my opinion, R&D is by far the least disruptive and most compatible use.

[02:46:40] Road conditions have also been raised as a concern. Having lived here for more than a decade, I can say those issues long predate R&D. The community has never had a road maintenance agreement, and disagreements among neighbors meant that maintenance and improvements were largely non-existent.

[02:46:59] Since arriving, R&D has widened and resurfaced the road and replaced the deterring mailbox cluster at no cost to residents. Are the roads perfect? No, but they're significantly better than they were before. Vehicles occasionally leave the roadway or cross grassy areas, as evidenced by barriers around the yards, including my own, which were installed years before R&D arrived.

[02:47:24] Water also runs downhill onto neighboring properties, a condition that exists long before R&D, and is simply a function of topography. Finally, with the exception of the Palance, every property owner who lives in our community of Olds supports R&D's continual operation.

[02:47:40] Thank you, sir. Good evening, ma'am. Rosemary Olds, you're going to be followed by Lyle Rich. Good evening. Good evening. My name is Rosemary Olds. I'm the wife of Dan Olds, who is the co-owner of R&D Baseball. I'm a mother of three, and I'm a master's prepared nurse.

[02:47:58] Baseball requires space across Loudoun data center development, has eliminated warehouse options, and driven rents beyond what small businesses can afford. R&D anticipated this. They envisioned a baseball farm, a place where athletes can grow and train indoors and outdoors. They found a property with an existing indoor arena previously used for youth instruction, athletic instruction.

[02:48:21] Before purchasing it, they conducted due diligence and met with county representatives. No objections to their proposed use were raised. What has unfolded over the past 20 months with zoning has been indefensible. What should have been a clear, by-right use within a pre-existing structure has instead endured almost two years of redundant reviews and shifting expectations.

[02:48:41] This is not diligence. It is dysfunction. The government has a responsibility to provide fair, transparent, and predictable processes. It is unreasonable for the government to require small businesses to expend significant time and resources pursuing a defined classification only to lead a reverse course and compel the applicant to start over. Such actions undermine the basic standards of fairness and institutional integrity. The process has had a devastating impact on R&D and our families. If you've ever run a small business, you know that every day of delay and uncertainty translates directly into lost opportunities, financial strain, and stress that extends beyond the business and into the lives who depend on it.

[02:49:21] I respectfully ask you to approve this minor special exception and direct zoning staff to provide R&D with a clear definitive list of any remaining requirements along with a predictable and transparent path to full compliance. R&D should be permitted to operate fully while completing the limited remaining items required by the county for issuance of building permits.

[02:49:41] The building exists. It is a by right use. This is a straight, this is a common sense request that deserves your approval tonight. Thank you. Thank you. Lyle Rich, followed by Corey Perdue. Good evening, sir.

[02:49:58] Good evening. Thank you so much. My name is Lyle Rich. I'm a resident of Brown Hill, a father, baseball dad, and a coach for many of our young kids in this county. I can say that I appreciate your perspective on bringing about the young children and kids as it pertains to screen time and activity.

[02:50:17] That's very important, and we see that as an increasing. The things that, you know, our parents had to deal with are not the same things that we as parents are having to deal with. So I appreciate that perspective. I have visited and trained at the R&D facility, and it's been great. The overall appearance is phenomenal.

[02:50:36] It's very quiet, and I've trained with Dan and trained his son and coached his son for many seasons. But as a coach, training and raising our community's kids and athletes, R&D Academy is needed and a significant value to our community.

[02:50:56] There's no training facility like this in Hamilton, Percival, Round Hill, that can support the level that R&D is supporting. As you can see, products of their development here sitting in the crowd. So as a coach, and as Robert mentioned earlier, this type of training space is extremely limited in this area.

[02:51:16] They are good neighbors, and they are good people. I have coached alongside Dan for many seasons, coached his son. We want them instructing our kids and our athletes. Quality is what we want for our community and our kids, just as Mr. Turner had mentioned. So I'm in strong favor of R&D, continued development here in Lawton County.

[02:51:35] Thanks. Thank you, sir. Corey Perdue, you'll be followed by Lucas Driscoll. Good evening. Hi, good evening, and thank you. My name is Corey Perdue. My son has trained at R&D for four plus years.

[02:51:51] He's currently pitching in college. And I can tell you that over that period of time, he's learned the skills that Rob shared in his initial presentation around discipline and development and commitment. He's developed a set of friendships at R&D that will last him a lifetime.

[02:52:11] I'm also a business, I'm in business and healthcare where I did a startup. And started from the very beginning and built that into, you know, something of significance. And I think we can all appreciate, you know, the difficulty, you know, when it comes to starting a business.

[02:52:28] And I would encourage you to kind of then empathize with these guys who are baseball guys, right? They run a great business and they've done a fantastic thing. But when they come to these types of situations, they're looking for help, right? And they're looking for support. And I think when you think about, like, some of the things that they've had to go through, I think are very unfortunate.

[02:52:48] But I would argue that, you know, there's still this opportunity to support what they need give them guidance. If you've ever seen what they do, it's phenomenal. And I can tell you that haven't seen those kids come out of there and see them perform on the field. But the confidence the things that they've had, you know, miss Randall when you talked about the things that you talked about being a mental health provider and getting folks off their devices and having them do things that are productive and give them the confidence, I think is spot on.

[02:53:18] This is exactly what R&D does. And I will tell you, there's a strong emphasis on kids playing college this and going to the pros, but most of them won't, right? And these guys know that. And I've seen time after time when they've invested in a kid and give him the confidence that's going to sustain him and enable them to do great things.

[02:53:38] But I would just urge this committee and this board, as you're thinking about what's right, Help these guys out. Thank you. Oh my gosh. I wasn't looking at looking at your time. Did he go over? I'm sorry. Thank you. Thank you Hello, young man. You are Lucas Driscoll. You will be followed by Matt Well, I have Matt Livingston and then Judy Livingston unless you guys want to use your two minutes one minute each but ready when you are Good evening. Good evening everyone. I'm Lucas and I'm a resident of South riding and I

[02:54:12] I'm a recent graduate from politics Catholic High School and I'm here to share my experience with R&D baseball Which is a program that has greatly influenced my life in the lives of many young athletes here in Northern Virginia I've been a player with R&D for almost three years now and during this time I've seen how this program does much more than just teach baseball. It creates an environment based on discipline and a strong worth ethic ethic and Personally, the atmosphere has given me the chance to pursue a long-held dream I've had, which is to play college baseball.

[02:54:47] And my story is just one among many, as we see here back here today. And R&D baseball is an essential part of youth development in our community. In a time where youth sports seem very transactional and money-based, R&D focuses on helping kids grow and learn and improve.

[02:55:06] And they teach our youth how to manage pressure and be a leader and work together towards a common goal, which I think is very important. And this view for the farm represents a long-term investment in the future of Northern Virginia athletes. And it will offer a safe indoor and outdoor space and where future players can train, learn, and develop.

[02:55:29] And in this area, this will build a strong sense of community pride with all our youth athletes training together and getting off their cell phones and doing physical activity, which I think is important. And this can help many of the youth achieve their goal that I had myself, which is to play at the next level, which is very important.

[02:55:50] And I urge the board to support R&D Baseball, and I truly believe that they will operate responsibly and in the best interest of us, the athletes, by backing R&D Baseball and the development of the farm. You're investing in the character, health, and future of the youth in northern Virginia.

[02:56:07] Thank you for your time and for your commitment to our community. Thank you. Mr. Driscoll, what school are you heading off to? Center College in Kentucky. Congratulations. Thank you. Matt Livingston, good evening, sir. I have Matt and Judy. Are you both speaking? Well, we were, but she was unable to come tonight.

[02:56:25] Okay. Ready for you, Mr. Livingston. Sir, you're going to be followed by Teresa Shappaport. Good evening. Good evening. My name is Matt Livingston, and I'd like to begin with the county's own stated values for AR1 districts. The county's policies for AR1 districts are attended not only to preserve open space and farmland, but also to protect rural character, support the rural economy, and foster a high quality of life for its residents. Those goals reflect the county's recognition that preserving rural Loudoun means more than protecting land alone. It also means sustaining

[02:57:03] the traditions and activities that have helped define rural life for generations. I believe this application should be evaluated through that lens. Baseball is one of those traditions. For generations, baseball has been part of the social and cultural fabric of rural communities like ours.

[02:57:20] My first memories of baseball are from my grandfather's dairy farm in upstate New York, where I played catch with my great uncle. He had played on an amateur team that competed against other teams throughout the Mohawk Valley. The same story is played out here in Virginia.

[02:57:38] Towns in western Loudoun like Percival, Round Hill, Middleburg, and Leesburg all supported amateur baseball teams. Across generations, baseball remains part of the traditions that define rural communities like ours.

[02:57:55] If preserving rural Loudoun means preserving not only land, but the traditions and activities that have long been part of rural life, then baseball has an important place in that conversation. Rural character is not defined only by the land, but also by the communities and how they live, gather, and raise their families.

[02:58:14] R&D baseball advances the county's stated objectives for AR1 districts in two important ways. It preserves a longstanding rural tradition, and it serves Loudoun County families. For 14 years, R&D has trained young athletes from Loudoun and the surrounding region.

[02:58:31] Hundreds have earned college scholarships or gone on to play professionally. But its greatest impact is on the young people and families it serves. R&D provides instruction, mentorship, positive role models, and a safe environment. I'm sorry, your time is up.

[02:58:47] Okay. Okay, thank you. Thank you. Teresa, I think it's Shepard. Shepard, thank you very much, ma'am. And you're going to be followed by John. So I'm assuming you know one another. Yeah. Okay. Ready when you are.

[02:59:04] Madam Chair and board members, good evening and thank you for this opportunity to talk. My husband and I have been residents of Loudoun County for over 45 years. We moved to western part of the county 38 years ago for a better quality of life for our family and as an investment for our retirement.

[02:59:24] We are the longest residents living in this neighborhood and are concerned about the safety of the road and our property value due to R&D Baseball's commercial business next door. My concerns are not personal. I have nothing against the people that are trying to operate this business.

[02:59:42] This may be a wonderful thing for the youth of the community, but this does not fit in with the rural residential setting, especially with the amount of traffic that they are planning to put on a one-lane easement road. This property was never zoned commercial, and we stated that to the owner the first time we met him, and we told him that this property was not a commercial property. Our concern is also for R&D's future expansion plans for this property. If you pass this, I ask you, why does Loudoun County have

[03:00:16] rules or regulations if they can be broken or granted exceptions? If this passes, it will set precedents for many other people who want to bend the rules and commercialize new rural areas.

[03:00:32] I am also concerned about the traffic that is intended on this one-lane easement with five houses. Not only the road, it adds traffic to Route 9, which we have difficulty accessing now. Another major concern is for emergency vehicles that may need access to the houses on the road, or for that matter, their facility.

[03:00:54] I respectfully ask that you not allow R&D Baseball to operate this large commercial facility in an agricultural residential area. I ask this not for myself and my family, but the safety of all residents. Let's try to preserve the land that is left in our beautiful western Loudoun County.

[03:01:14] Thank you for your time. Thank you very much. You will be followed by, hello sir, how are you? and you, sir, will be followed by Brandon McNeil. Good evening, sir. Chair Randall, Board of Supervisors, I'm here to talk about the R&D baseball application.

[03:01:32] Some speaking before and after me may talk about how much they appreciate R&D, and I get that, but they don't live close to their access road or adjacent to their property, so they are not impacted as much as we are. My house is approximately 50 feet from the one-lane gravel driveway that R&D uses for its voluminous traffic. The lane is too narrow to handle the excessive traffic to and from R&D, and cars regularly leave their lane and come over onto our property to get around each other. On occasion, we watch our grandkids and our daughter's dogs,

[03:02:10] and we are fearful that they may get hit if we let them out with so many vehicles going by. The neighbor's lane was not meant to handle that much traffic, and it creates a very unsafe situation. There are also neighbors who use a private lane for walks, get their mail, and I'm fearful for them getting hit by a car.

[03:02:30] And I can relate to this as I was hit as a pedestrian at 50 miles an hour on Route 9 across from my driveway some 28 years ago, and I'm still paying for it physically. And there was a lot less traffic on Route 9 back then. Then we come to a situation where we have a confluence of traffic from three private lanes coming together at Route 9.

[03:02:53] There are eight houses whose driveways all meet at this one entrance to Route 9, where there are no turn lanes. And with the additional traffic from R&D trying to enter and exit Route 9, this will become a much greater safety risk, not to mention the congestion issues.

[03:03:10] I urge the board to severely limit the amount of traffic allowed to R&D baseball so that it is consistent with the residential setting and the capacity of their shared private driveway and keep our little residential neighborhood and roads safe.

[03:03:26] Thank you. Thank you, sir. Brandon McNeil, you will be followed by William Glynn. Good evening. My name is Bray McNeil. I attend Riverside High School and I'm going to be a senior in the fall. I want to start off by adding on to what you said earlier about what children do without their free time and how they're on their screens.

[03:03:47] I came from a situation where baseball was really different to me, and it was new to my family. In middle school, I was a troubled kid, and I was looking for direction, and aside from screen time, a lot of kids find themselves getting into bad situations, and I found baseball took me out of that.

[03:04:04] It gave me time, it gave me direction, and I've been to almost every pitching facility in the area, and I can say without a doubt, R&D cares about their players, they care about who they're training and why they're training them. I'm fortunate enough to be given a taller body, and I know that with that, I have physical opportunities, and I use baseball for the opportunity.

[03:04:30] And with that, I'm going to be attending the University of Pennsylvania, an Ivy League school, which without baseball, I would never have that opportunity. And baseball, not only that, but their connections give me the opportunity to play baseball and go to an Ivy League school and have all these

opportunities that would not be otherwise available to me or much like my friend over here, Danny Jensen.

[03:04:53] The people you meet at R&D, the connections you have and the relationships you build will last a lifetime, and I can't speak highly enough to Dan, to Rob, to Connor. They're always there for you, and they're always going to vouch for the betterness of you.

[03:05:11] Brian, our lifting guy, he'll get on you. He'll hold you accountable if you're not lifting. You got to get better, and that's what they strive for. They don't strive for perfect. They strive for better, and that's why I hope you guys consider R&D. for your approval. Thank you. Young man, one of the things that human beings say that they are most afraid of is public speaking. That's a good job. That's a good job. Good evening, sir. You are Mr.

[03:05:40] Glenn. You'll be followed by Denise Royale. Good evening. Yeah, so my name is William, but I go by Rocky. I'm 20 years old, and I appreciate the opportunity to speak here today. For R&D baseball, I got the opportunity to play at Old Dominion University last year in 2024 and 2025.

[03:06:01] I'm now going to play baseball at the Virginia Military Institute this fall. R&D has made a tremendous impact on my life. I've been training there since September of 2023 at the old location in Herndon, and it's become much more than just a place to practice baseball. After I underwent elbow surgery in April 2025, I was forced to take a gap year to recover this past year.

[03:06:21] During that time, I had the opportunity to take an internship at R&D throughout the fall and winter of 2025 and 2026 to learn from myself and to learn more throughout the game. Being there every day gave me a unique perspective. I didn't just see athletes training. I saw young people all the way from eighth grade up to seniors in high school up to 25-year-olds playing at a professional level.

[03:06:44] I saw them building confidence and chasing goals they otherwise might not have had the opportunity to pursue somewhere else. Before I stepped foot into R&D back in 2023, I had no idea how much it would change my life. It became the place that helped me recover physically, grow mentally, and continue pursuing my dream of playing baseball.

[03:06:59] Today, I truly believe it is the only facility in our area that can provide the level of coaching, training, and development that athletes like me need to reach our full potential. This isn't just about baseball. It's about creating opportunities for young people. It's about giving kids a safe, positive environment where they can learn perseverance, accountability, and the value of hard work, and they want to take that away.

[03:07:19] These lessons extend far beyond the baseball field. If R&D is no longer able to operate the location of Hamilton, it won't just affect me. It will impact countless athletes and families throughout the county and, frankly, the state beyond this facility. Without access to R&D, many of our long-term academic and athletic goals will be placed at serious risk because there simply isn't another place that offers what R&D does.

[03:07:40] I respectfully ask you to consider the lives that are being shaped inside these walls. For many of us, R&D isn't just a business. It's an investment in all of our futures. Thank you for your time and for considering my perspective. Rocky, I don't know how I feel about you seeing young people all the way up to age 25.

[03:07:56] I don't know how I feel about that. But thank you very much. Ms. Denise Roy-Rowell. Rowell. Rowell. There you go. Like Powell, but with an R.

[03:08:12] You'll be followed by James McJen. Hello, ma'am. Thank you. Good evening. I love baseball. I'm born and raised here. I've taken countless stats for years. I coached elite gymnastics for 20 years and then I retired and I bought a peaceful property next door. I served on the RADC. I helped shape the comprehensive plan. Part of that was what does recreation have to do

[03:08:44] with our rural. I coached at Apex, huge facility, grew it from 300 athletes to over 3,000. I see what that looks like. It's great for our youth. I still work with youth. I still sit on school boards. I still sit on, that's not the point. We're here for land use. We're here for what is going to happen if this is approved. We haven't even talked about the commercial well that is necessary per the waterworks. It hasn't, there's no compatibility. Is it going to drain us

[03:09:21] dry? We haven't talked about the 1,000 gallon propane tank that isn't cited, but it's been there for a while. We haven't discussed the parking lot that didn't have a permit, but yet, I guess that's the turnaround lane. There are a lot of things about this application that don't fit. If we want to talk about the small business use, at what point does four employees to eight employees setbacks? If you turn around and look at that map, that yellow line points directly at

[03:09:57] my house and they say that 500 feet is it's acceptable but who doesn't want to hit a grand slam guess where that lands my house my house so i'm not asking it's not about the business it's not about baseball this is about is this the place that this belongs i want to see this business succeed. Thank you. Thank you. Thank you. James McGinn, you're going to be followed by Danny Jensen. Good evening, sir. Good evening. Good evening, Madam Chairman and Board. My name

[03:10:36] is James McGinn. I'm a resident here of Leesburg, Virginia. I just want to talk about the support for R&D baseball and what it's done for my son, Landon. About three years ago, he started training there. He set a goal to play Major League Baseball like many of the other kids here. Through the last three years, what Rob and Dan have been able to do is teach him. They've created a brotherhood.

[03:11:02] They have created a group of boys that love each other and support each other. They don't just focus on baseball training. They focus on creating the total man. Those kids are role models. These kids support each other, and they're changing athletics in Northern Virginia. If you watch the Major League Baseball draft over the weekend, there was at least four to six kids that trained at R&D Baseball that will now have their chance to play Major League Baseball. My son loves it.

[03:11:31] He's there five days a week, training, learning, honing his craft. And through that, he's achieved his first goal of getting a scholarship to play Division I baseball, and he'll be off to play at Radford University in August. R&D's helped him achieve his goals. Taking the farm away from them, You're not only going to kill his dream, but you're going to kill the dream of many others.

[03:11:55] Today, Loudoun County is known as the data center capital of the United States. With the approval of R&D, we could become the baseball capital of the United States. I recommend approval of R&D for this reason. And be proud to have a facility like this in our community.

[03:12:13] And be proud when you watch Major League Baseball and you're watching the kids that grew up here in Loudoun County. Thank you for your time. Thank you. danny jensen followed by andrew webb good evening good evening to you um my name is danny jensen and i'm a rising senior briarwoods high

school and i want to share what r d baseball means to me and why this should be allowed to continue developing athletes in our community so before i ever trained at r d i was able to see its impact to one of my longtime teammates i watched him work hard improve his game and grow as a player seeing that progress made me want to be part of this

[03:12:48] environment that helped him succeed when i joined r&d i quickly realized it was much more than baseball the coaches and culture taught me discipline accountability confidence and how to overcome adversity those lessons have helped me not only as an athlete but as a person over the years r&d has had to move locations and each move creates uncertainty but the coaches never stopped showing up for us no matter where the facility is no matter where the facility was they stayed committed to helping us improve and reach our goals what r&d means to me cannot be measured by my statistics alone. It became a second home where I built friendships that are

[03:13:24] going to last me a lifetime and a supportive community to me. When I first joined, I kind of lacked direction in my baseball development, and through the coaching environment, I grew into a better player and gained opportunities I never thought possible. That growth ultimately helped me earn the opportunity to attend Yale as a student-athlete in the near future. Most importantly, R&D helped me believe in myself, and it showed what can happen when young athletes are given a place where they can work towards their goals and pursue those goals. R&D is a community that creates opportunity and changes many of our lives. I respectfully ask that you consider the impact they have made on so many athletes and

[03:14:01] families and allow them to continue serving our future generations. Thank you for your time. Thank you and congratulations. Thank you. Andrew Webb followed by, do we have any more speakers down there? Because my last speaker would be Emily Johnson. So Andrew Webb followed by Emily Johnson.

[03:14:16] Good evening sir. Good evening Madam Chair and members of the board. Thanks for the opportunity today to speak. My name is Andrew Webb. I recently graduated Light Ridge High School and will be pursuing my academic and athletic career at the University of Lynchburg. I wanted to note in this past year at Light Ridge, I was nominated by our principal as our school student board representative, so I know how it feels to sit up there at these long meetings, and I ask you to really pay attention and take into account what I'm here to say along with my fellow peers.

[03:14:41] I spent the past year deeply involved with R&D baseball, not just as a participant, but as someone who has seen firsthand what this program means to young athletes in our community. R&D baseball stands for development, discipline, and opportunity. It's an environment built intentionally where kids learn to work hard, think critically, and support their peers. Over the last 12 months, I've watched players transform into incredible athletes and young men. This doesn't happen by accident. It happens because R&D creates a space where character and skill grow side by side. The farm is a crucial part of that vision. It's not just land. It's a developmental ecosystem where players learn the game the right way, where coaches can teach without constraint, and where families gather around

[03:15:17] something positive and healthy. The vision for a farm is a good thing. Loudoun County, it's a long-term investment for future ballplayers, future leaders, and future community members. However, this two-and-a-half-year process has taken a toll. The repeated shutdowns three separate times due to procedural issues have been detrimental to youth development. When operations stop, kids lose training

time, momentum, structure, and the sense of belonging that keeps them engaged. These interruptions don't help the community. They hurt the very young people that we're all trying to support. I'm here today because I believe R&D and baseball is net positive for Loudoun County. This program is exactly the kind of community-building youth-focused initiative that

[03:15:53] we should be encouraging, and I believe we can execute this vision responsibly together. With collaboration instead of conflict, clarity instead of confusion, and shared commitment to doing what's best for our kids, R&D Baseball is ready to be a partner. We're ready to meet expectations, follow procedures, and build something that benefits everyone. I'm asking you to help us move forward so we can get back to doing what we do best, developing the next generation of ballplayers in our community. Thank you all for your time. Thank you. Thank you very much. And our last speaker would be Emily Johnson. Good evening, Ms. Johnson. Good evening, supervisors. My name is Emily Johnson. On behalf of the Piedmont Environmental Council, we request you deny this application. It is unfortunately an example of a serious problem here in Loudon. Poor zoning

[03:16:30] enforcement, especially tied to improper use of zoning exemptions. Baseball training is a major recreation use, inappropriate on this private access road in a rural neighborhood. Its proposed use of the ag structure exemption for 14,000 square feet of training facilities is also not only improper but unsafe. On May 4th, before this board, Loudon's building inspector and fire marshal both explained that the ag structure exemption to the uniform building code is intended to be used for structures engaged in active agriculture. Such structures should be only occasionally and infrequently occupied for events of less than 50 people with agricultural use resuming after gatherings. That's not what this is. In fact, the fire marshal's

[03:17:08] office has already indicated that they would expect the existing building to most likely no longer be classified as a farm building based on its new use. The ag exemption is questionable and ill-advised. For safety purposes, inspection requirements for things like sprinkler systems and marked exits are especially important given that one condition of approval is for doors and windows to remain closed during instruction to mitigate noise.

[03:17:29] Similar operations of this scale are required to obtain site plan approval and are subject to review under the FSM, LSDO, and codified ordinances. This should be too. There's also poor fire access here as we've discussed, specifically pointed out by the fire marshal's office in January when they said actual ability of emergent vehicles to traverse the roadways also questionable. Planning staff is clear the applicant has not yet demonstrated the ability to comply with these safety requirements and frankly that should be non-negotiable. This application also highlights inconsistency in our zoning enforcement. The application's assertion that their use has demonstrated compatibility with surrounding properties and no violations or adverse impacts were identified is not a very fair retelling of their denied temporary event permit from the board of zoning appeals. Continued

[03:18:09] operations that BZA Council said could be construed as a violation, a history of likes complaints, and open cases contesting the use. Regardless of what you think about the vision of this business, its documented history of complaints, serious safety risks, and incompatibility with the rural neighborhood fail to meet the standards required of a public facing business.

[03:18:27] Thank you. Sorry. Thank you. Thank you, Ms. Johnson. Mr. Kirshner, would you like to make a motion, please? I would, Madam Chair. Just as a point of order, I was going to move this to July 21st but I

think there's enough questions that we're going to need to move this to the September date because it's just too quick turnaround and so I move that the Board of Supervisors is Ford, Legge, 2025-20052, RD, Hamilton Academy, specs 2026-0005, specs 2026-0006, and specs 2026-0007 to the September, would Madam Chair prefer the 15th, that's the draft

[03:19:04] motion or is the 5th better? The 5th is fine if they can. The 5th is fine. Okay. We'll move it to the, make sure it is the 5th, correct? That's the 1st. Is it the 1st? To the 1st. September? Sorry. September 1st, 2026 Board of Supervisors Business Meeting for Action. Second. Discussion on the motion? Yes, Madam Chair. Thank you very much and I appreciate it. You know, this is baseball. It's a great American pastime. So obviously I come at that with, I love baseball. My kids love baseball. And so I'll just be very honest up front.

[03:19:36] I'm a big fan of what this organization is doing. I want to thank the staff for doing all the hard work that they've done and working with the applicant. But to the applicant, what you've had to go through reminds me kind of what Pete Rose said.

[03:19:51] He said, I'd rather -- he said, I'd walk through hell in a gasoline suit to play baseball. And I think in a lot of ways, just kind of the way this application has unfolded for you is really emblematic of that statement. This has been a very unusual application, and I think a difficult one.

[03:20:09] But I will tell you that I really appreciate what you guys have done. I think we saw a lot of the young people who have benefited. I think what I read, you have over 200 high school players who developed into D1 commitments. You've trained 26 major league baseball organizations, 26 MLB organizations, and produced 25 MLB draft picks, which says a ton for the kind of things that you guys have done.

[03:20:34] I will say that this property I think is already kind of a business ready. I mean, it obviously has a very large equestrian parcel. It's 21 acres, and it's, you know, had a, this history for the applicant has been very difficult.

[03:20:51] Originally, they thought they could come in as a by-right camp. They got, they went through three different submissions with staff until they were told that this was not a by-right use camp, and instead they had to follow a small business personal instruction, which has, of course, contributed to a lot of the expense for them.

[03:21:08] So needless to say, this was a huge setback, but as they say, there's no crying in baseball, and I think R&D, although there may have been some gnashing of teeth, you have continued to move forward, and I appreciate it because I think you have a service that's really important that you're providing.

[03:21:27] And I really appreciate you've really jumped through all the hoops that the county has asked you to do. And so including \$2 million to your own expense. And I think that's really, really, really something that we need to point out here because we want to try to avoid these costs.

[03:21:43] We want these small businesses to succeed. And, you know, as Yogi Berra said, it over till it's over. So I appreciate what you've done. And there's a lot more, I think, that's misunderstood on this board as to what has to go forward. And that is you have to do a site plan.

[03:22:00] That's where the marshal will come in. That's where the widening of the road will come in. Um, that's where the zoning and a building permits will then come in and ultimately an occupancy. So

there's a lot of, I think several folks spoke, spoke here. We are not, we're at whether or not we believe this is, is a reasonable land use.

[03:22:17] The staff believes it is and, um, I believe it, it is. I think some of the details still need to be worked out between now and the September meeting. Um, but I do believe that we can get there and I believe this is going to be really good for the community as a whole. So I would ask my colleagues to support it and move it forward to the September 1 meeting.

[03:22:34] Thank you, sir. Ms. Brixman? Thank you. I am happy to support this motion. I'm not sure where I'll come down on September 1st, but I'm happy to move it forward. Thank you. Mr. Crony? Thank you, Chair Randall, and I'm happy to move it forward, too.

[03:22:51] I support recreation for youth and adults and have been advocating for land banking for parks. We don't have enough ball fields, including baseball fields. And I want to thank you all for, especially the young athletes who came out to express what R&D means to you.

[03:23:10] So that was great, and thank you for coming. I support the business, but I do question whether it fits in the rural residential setting. Small business personal instruction is a commercial use, not an agricultural use, and I am really concerned about the private access road.

[03:23:27] I would like to know if the applicant has the legal right to expand a private easement beyond the current width to accommodate the fire marshal's requirement. Emergency vehicles need to be able to access the property for the safety of the youth and the employees.

[03:23:45] The shared private road, in my opinion, is really not designed for the level of traffic, and it has to be really widened to two lanes to handle that level of traffic, to handle the 196 vehicle trips a day that the applicant has said.

[03:24:03] I also would like to learn more about what one speaker said about the groundwater impacts and about the propane tank. So maybe you guys can, the applicant can give a little more information about that when you come back. But the reason it's not buy-right is because they're making modifications to what a small business personal instruction use requires, reducing the setbacks and also increasing the square footage beyond the allowed 6,000 square feet.

[03:24:36] So that's why it's not buy-right. It's just because you're making modifications. And then a site plan would be required with a special exception. So I look forward to hearing more about the private access road and also about the propane tank and groundwater impacts.

[03:24:53] Thank you. Thank you. Mr. Letourneau? Thank you, Madam Chair. Okay. Well, thank you, everybody, for coming out and speaking on this. I'll certainly support the motion. I want to get to yes on this because I think this is a good business and it's a good use. But we do run into these issues with businesses in the West.

[03:25:11] It's a tough place to have this type of business because we run into these type of impacts. I go into everything assuming that everybody has good intentions and so I know the applicant certainly does with what they're trying to do and I'm sure the neighbors have legitimate concerns. A few of them who have come in front of us as well and you always have to put yourself in the shoes of people who live there and what you would want. So I get it and I'd like to see this a little better myself. I know the applicant is

really frustrated with the timeline and how the whole experience here and that's too bad. I really do feel badly about it.

[03:25:43] I would ask you to remember this is the first time we're seeing this like except for Supervisor Kirshner it's his district but for the nine of us the other eight of us we've got to come in here we've got to listen to the public or listen to staff presentations. I can't prejudge an application so this is our process and I'm sorry that it's we got to now extend a little bit but we almost never vote on things at this meeting when there's public discussion because it's literally in our rules of order that we don't and it's so that we can hear all this and then go make a decision so i i get the frustration but that's where we need to be so i don't think you want to take a vote tonight because it might not turn out how we want or you would want so let let us do that work um

[03:26:23] i'll follow up if i have specific questions to try to get you there um and uh and we'll go from there and i'll certainly talk to supervisor kirschner and my colleagues thank you mr turner Thanks, Madam Chair. With your permission, can I ask staff?

[03:26:39] Absolutely. Staff, so your position is if we get an accepted, an approved site plan that incorporates the easement and the fire code and the setbacks, then this is an appropriate use for this location, correct?

[03:26:55] That's correct. What happens if we get to September 1st and we don't have an approved site plan? So the site plan would be what follows after approval of the minor special exception. so there will not be an approved site plan by that date. Okay, so we then approve the application on September 1st, and we can't get an approved site plan because of the issue with the easement, which is apparently a legal issue. That's correct. Can they begin to operate when we approve on September 1st? Can they begin to operate without an approved site plan? Not under this proposed personal instructional use. They can operate under the temporary use permit that they

[03:27:32] have through the end of this year. Which expires the end of this year. Correct. Okay, thank you. So, um, I have a couple of questions. Um, I keep hearing all these different number of car trips. I've heard 10, I've heard 70, I've heard 200. If they're only allowing 30 people a day, and some of the people may be in, you know, it's, some of the people may be in cars together. What, I don't understand how we're getting to 200 cars. Some of the, some of the residents said there are 200 cars a day.

[03:28:08] If they're not seeing that many kids a day and some of the kids are in cars together, how are we getting to that number of cars? That's my first question. And these questions can come back to me. Is there any ability to enter their site, their land, without crossing other lands?

[03:28:27] Or is this a shared turnaround driveway so no matter where you're going, everyone's crossing someone's land? And because I did hear a lot of people say they're turning around on my land or they're crossing my land. To be honest, if somebody was driving up my house and needed to turn around in my parking lot or my driveway, I would not care at all.

[03:28:48] But it's different if you're driving over someone's land or onto someone's land. So that's the question, and so that's the question. I don't understand how R&D, and this may be a question for you all. It did say that somebody said that it was a road that was widened.

[03:29:06] Is it a private road? And I will need to understand how R&D, how there was a road that was widened, and if it was done properly, and did BDOT check it out and that type of thing.

[03:29:22] I do have questions about the commercial well and the propane. I think that's a valid discussion. And I'm going to get with Mr. Kirshner, and I will come out. I always come out. It's easier for me. I don't have a good mind's eye. I don't imagine things well, so I make a lot of trips and do it.

[03:29:40] I am not coming out to play baseball. I am just coming out to see the facility, and I really want to see the turnarounds and those types of things. And so I will make a trip out. If Mr. Kirshen doesn't mind taking me out there, I will make a trip out. I hear the neighbors.

[03:29:56] I do. I'm not ignoring it. I think when you say it's a land-use issue, That's why I want to have all these questions answered. But I will also say I want to get to yes. I will also say that as well. So I'll say both those things. But I will come out because I do hear the concerns.

[03:30:16] And I think, you know, concerns are valid. Concerns are valid. So, but I'll make a trip out. Mr. Kirsten, would you like a closing, please? Yes, in the words of Babe Ruth, never let the fear of striking out keep you from playing the game, as they say. I like these baseball statements.

[03:30:37] This is, these are always, I agree with Supervisor Letourneau. These are always tough because, you know, we have, we actually have a zoning ordinance. I disagree with a lot of folks here who came up and say, oh, this is just not allowed. Well, that's not true. It is allowed.

[03:30:53] They are asking for specific special exceptions. And the question we have to ask ourselves is the level of intensity, whether it should or should not be allowed. A lot of people are talking about the fire marshal and some of the things that really belong to the site plan process that we should not be making land use decisions on.

[03:31:12] And I'm happy to bring the chair and anyone else out who would like to see this and take a look at it. I want to take a second look after some of the comments tonight. And I do hear a lot of the residents and some of the concerns. I do find it interesting that the same folks who are opposing this have opposed any other use in the past, and that always troubles me because there -- nothing is not going to happen in a lot of these places, but we do want the right kind of things to be happening in these sorts of places, and, you know, this is -- we have a tendency to think, well, there will be lots of games and lots of noises and, you know, people cheering.

[03:31:50] That's not -- this is a training facility. It's very different than you kind of think of a normal baseball field, and I appreciate the one resident who stated, you know, once in a while you hear the pleasant sound of ball hitting the glove. Well, that was useful. And then another person talked about how they were concerned about a ball coming 500 yards in their yard. I would note to that that the longest ball hit in the home run contest was about 475 and it was a major league players. I don't think you're going to get a 500 yard home run. But if you do, that guy should be in the majors next year.

[03:32:19] So I'm just suggesting that's the case. But again, these concerns are not illegitimate. There are things worth looking at. I'm really appreciative of the residents coming to speak to us um and uh and to hear those it's really good for my fellow supervisors even good for me who's very very invested in the sense that I've been following this application and working with the applicant working with staff to try to bring them in compliance to make sure we kind of get the right kind of use for this spot um I always remind folks that uh when one particular application comes down there will be something in its wake if it if something gets rejected and

[03:32:56] And sometimes that is not better than what the current application is. So we have to kind of balance these things as board members. And we try to do our best up here. And so I appreciate your patience. And regardless of which direction this goes, I would ask that, you know, just consider all the pros and cons.

[03:33:12] Thank you, Madam Chair. Thank you, sir. The motion was made to send it to the first, the September 1st meeting. What day is Labor Day this year? Okay, okay, all right, sounds good. Okay. All right. All right. Okay. That sounds good. All right. Mr. Kirsten made the motion. I second the motion. All of you able to say aye. Aye. Aye. Any opposed? Any opposed? That motion will pass 9 to 0. Thank you.

[03:33:42] Supervisors, we've been on the dais now for three and a half hours. So I was going to try to get three items done before we take a break, but I was wrong. We're going to take a break right now because I need one. So let's take our dinner break. Let's try to make it 15 to 20 minutes and not a minute more. Thank you.

[04:08:40] There we go. All right. We are back, and we're going to go on. So tomorrow morning, some of us have to be on a plane really very early, not have to, going to, to go to New Orleans for the NACO conference. And so I'm not sure how long we will be on the dais.

[04:08:58] So I might, just to make sure things are good and cool, I might actually, after I do go to Mars, hand the gavel to Mr. Crony to let her run a public hearing just to let her do it and see how it feels. Just in case we have to leave or anything, you know, because she needs to have that experience and she hasn't done that. So I might do that tonight, okay? You ready for that?

[04:09:23] Okay, I believe in you. Okay, but right now we are going to do, okay, thank you. Right now we are going to do we were going to do we were going to do go on the mars but you guys are sitting up here right now so i guess we're going to do tech park because you guys are sitting there already very smart tony very smart very smart so there we go um is miss brixman still on or back on

[04:09:59] madam chair uh supervisor brissom just notified me that she has left the meeting for the evening Okay, if you will not be back on. Okay. Hello, how are you? We're ready for the Tech Park, I guess, application whenever you all are. Good evening. My name is Darby Metcalf with the Department of Planning and Zoning. I'm here tonight to present the application for Tech Park at Dulles Substation.

[04:10:23] The subject property is a 20.6 acre portion of an 83 acre parcel located south of Old Ox Road, west of Carter School Road, and north of Dulles Airport. in the Dole Selection District and the Suburban Industrial Mineral Extraction Place type.

[04:10:40] The subject property is owned general industry under the Loudoun County zoning ordinance. The applicant requests a commission permit and a special exception to permit a utility major use, a minor specs to eliminate buffer planting requirements in areas where transmission lines intersect along the northern boundary, and provide a type 2 road corridor buffer in lieu of the anticipated type C along the southern boundary. Present on screen is an annotated excerpt of the specs plat. The proposed substation is indicated in gold and buffer modifications in purple on the

[04:11:13] south and north. The general plan policies recommend siting substations proximate to existing transmission corridors and encourages additional screening to mitigate visual impacts. Consistent with plan policies, the proposal is proximate to two transmission lines, is sited away from travel corridors, and provides a 12-foot screening wall on all sides of the proposal. Conditions of approval have been

recommended by staff to include rest perimeter road right-of-way reservation along the southern extent of the parcel, screening wall height, and reforestation. Staff supports ratification

[04:11:52] of the commission permit application and approval of specs applications subject to the conditions of approval. Staff are available for questions. Thank you very much. I do believe this is in Mr. Letourneau's district. It is. So I will go to you first for questions. Thank you, Madam Chair. The existing site here is currently occupied by Edessa, Washington, D.C., which is an auto auction facility.

[04:12:15] Is that correct? That's correct. And the ultimate plan for this site is not just the substation. There have been site plan applications for three data centers? That's correct.

[04:12:31] The substation in question here would serve those data centers? I would defer to the applicant. Okay. i think that's the only question i have thanks thank you uh mr croney is um is this a gis substation or a hybrid or it's an air insulated switchgear substation okay um and then i i think um there was something with the open space can you explain that that staff had a concern about

[04:13:07] the open space previously staff had concerns related to the open space and where it was located proximate to the VEPCO easements along the southern extent of the property indicated by the orange dashed line. Overall, the campus does have the required minimum open space for the parcel, and staff no longer have an outstanding issue related to that. Okay, I think you were saying it wasn't quality open space, was that it? Correct, there was a concern related to quality.

[04:13:37] Okay, but you don't have a concern anymore. That's correct. Okay, thank you. Thank you, Mr. Saines. Thank you. Are the power lines to power the substation, are those already there or do they need to be ran? The two transmission lines indicated by the bold red line are already existing. Okay, so it's not, so they don't have to hook up to that, so that 500 kb is already there or? The transmission lines exist, yes. Okay, and then they'll just hook up to those? That's correct.

[04:14:09] Okay, and for the, okay, and then I think you, Mr. Letourneau asked a question that you said that the applicant would be better suited for, correct? That's correct. All right, thank you. Thank you. What, is that it?

[04:14:28] Okay, thank you. Hello, how are you? Will you load up his presentation, please? Chair Randall there, good evening, members of the board. Tony Calabrese, there was no conspiracy to usurp, Golden. I just thought we were next, so I found myself here.

[04:14:45] Appreciate your time. But I didn't see you getting up either. Well, if you had told me to, I would have moved. Of course not. For you, I would have moved. No, I'm just kidding. All right, let's see if I can keep this moving. Darby, where do I need to point this? There we go.

[04:15:02] Thank you, ladies and gentlemen. I appreciate your time and excited to present this application. I think the application will answer some of the questions that were just posed. Respectfully, we think the property, as noted, is absolutely perfectly suited for the utility infrastructure in no small part.

[04:15:20] As Mr. Sainz just asked, we're really literally right next to existing transmission lines. I've got some very helpful depictions of that in a moment. The entire property is 83 acres. The substation itself is only about six acres. It's its own general industrial. We're actually within the 65 noise contour.

[04:15:37] And if you look to the bottom right of the screen, right above the number two, you will see the southernmost runway of Dulles Airport, just to give you some sense. I'm going to dwell on this graphic for

just a moment because I think it's indicative of a number of issues that we've been pleased to work through with staff.

[04:15:55] I'm very pleased to note that every one of your planning commissioners, 9-0, recommended or approved the commission permit and recommended approval of the special exception before you. Mr. Letourneau, the three buildings, and I guess I'll use the pointer here. Here are the pending site plan for the data centers.

[04:16:16] Here's the proposed substation. We have a small flex office building of about 18,000 feet. This is Old Ox, going from south to north. And Ms. Briskman, I guess who's no longer on, immediately recognized when we briefed her, these are the solar panels that exist at Dulles Airport.

[04:16:35] There is the existing Dulles, going the wrong way. There's an existing substation on the airport property here. next to the solar panels, the Mars substation is here.

[04:16:54] There's a number of applications pending by digital realty immediately to the north. Many of you have been up and down Old Ox may even recognize our pond. We have some very mature trees and as you can see, we very carefully and intentionally located the substation quite a bit back from Old Ox.

[04:17:10] It's about 800 plus feet from the right of way of Old Ox to just this corner of the substation to give you some order of magnitude. It's about 400 feet from Old Ox to the data centers. Also, to their credit, the applicant intentionally located the data centers so they aren't longitudinal, if you will, to Old Ox, but just the face of the buildings will be reflected, and I've got a depiction of that, which I'll get to here in a moment.

[04:17:38] Actually, let me also note while I'm on that depiction, again, for those of you who've been up and down Old Ox, we have a long existing berm. It undulates throughout the property. It actually is some 12 to 14 feet in height because of the topography at the southern end of the property.

[04:17:54] I don't think it gets less than four or five feet. So it's a long existing berm that's already in place. Again, the commission unanimously approved the commission permit. I'll get into that in just a moment.

[04:18:09] As you know, you have a limited period under 2232 in the statutory provisions to take action if you intend to on the Commission and the special exception no outstanding issues from staff unanimous recommendation approval from the Commission importantly the general plan is articulated in the staff reported by Darby this is a suburban industrial mineral extraction area of the county certainly recommends the noted uses including public utilities as reflected again for some greater context what you see in blue are immediately surrounding

[04:18:45] substations with quite a few other ones in the works that will eventually land where I sit and before before the board you can see as well the existing data centers across the street immediately contiguous and more applications on that front this gives you the site context and this is probably a good moment for me to embark on the 2232 that is the commission permit requirements as as the board knows so well having dealt with this on a regular basis under under that code provision it's the general or approximate location character and extent the

[04:19:22] general or approximate location character and extent should be substantially in accord with your general plan for all the reasons that you can see on this graphic and as endorsed by the planning commission we respectfully submit that we certainly exceed that bar very helpful and i'll do this rapidly i

want to be attentive i know it's already late on the left on the left hand side is if you're going from south to north along Old Ox. This is existing transmission lines. They go up and down Old Ox. Mr. Letourneau knows those particularly well and this gives you a flavor for the berm that's out there today. Mr. Sains, to your good question, this actually reflects the

[04:20:00] Dominion, contiguous Dominion substation right next to where we are and the graphic here on the right is the substation that exists along this purple line. It leads back to the Mars facility. menu is putting up. This again is just this is actually a highlight on to the north of our property. This is Carter School Road here. That too is a transmission corridor. That's what's out on the property today. That's the Mars substation located there in the bottom right not on our property on the

[04:20:35] contiguous digital realty site that is under construction. I've got four very quick renderings that are eerily accurate and important for the board to take a quick look, you can see where we start there at the southern portion of the site number one and we'll quickly go around the property. This is if you were a helicopter right above the lines that I just alluded to. Dominion has constructed these lines. They are literally immediately contiguous to the substation. This gives you a better sense of the orientation of the data centers. Again, it's about 400 plus feet from the right of way to the face

[04:21:13] of this data center, some 800 plus feet. All those trees will remain. They're really quite attractive and it's an excellent existing buffer. Back to the view, if you took off from Dulles Airport, as maybe you will be doing according to the chair tomorrow morning and you're on that southern runway and you look down to the right, this is exactly what you see in terms of the solar panels.

[04:21:40] I don't know why it's doing that to me, bear with me. This is exactly the depiction of the solar panels. You'd see the existing substation, the under-construction substation, and again, a reflection of where we are. We've really tried to situate this in a way that frankly, unless you're trespassing on the dullest property, if you're going up and down Old Ox, you will not be able to see this substation.

[04:22:04] Of course, we'll have a 12-foot screening wall around it. That's just a depiction of the berm. I don't know how I got to that graphic. I think this is out of order, but we're doing very substantial reforestation. I think, Mr. Crony, we have a tremendous amount of open space on the property.

[04:22:21] It actually, if you look at the entire parcel back to this depiction, you can see how much open space. The staff was focused initially on just the application site, but I know that we've overcome those issues. And in fact, Mr. Letourneau's office asked us and we agreed to a development condition whereby until this future property might ultimately develop, we don't expect it to be data centers, but until this future property develops, it's currently asphalt, as Mr. Letourneau said.

[04:22:52] It's the car facility today. We've actually agreed in the development conditions to remove all that asphalt in the parking when we get to the point of development, and we'll actually green that area up. Chair, in light of your schedule in another case in your early morning, I'm happy to conclude there and just respectfully submit that we absolutely surpassed the 2232 commission permit requirements as endorsed by the commission, and we'd be delighted, hopefully, for some good comments on the special exception.

[04:23:22] We're obviously not asking you to waive the rules, and we'll follow Mr. Letourneau's lead on how he would like to handle that. Happy to answer any questions. Thank you, sir. Good to see you. Mr.

Letourneau, again, you're a district. You'd like to ask questions to the applicant? No questions, Madam Chair. Thank you. Anybody else like to ask a question?

[04:23:39] So my, so this, if a data center were to go there, this is not a data center, this is a bi-write. I'm sorry. I'm sorry. Did he? Yes. I looked. Oh my, I missed it. Okay, Mr. Sainz.

[04:23:56] Thank you. Mr. Sainz. Thank you. This substation, is it only for the separate application? Mr. Sainz, yes. would be dedicated to the three reflected data centers. I was asked previously probably about a week and a half ago by one of your colleagues, there might be some modest extra additional megawatts associated with that substation that could be utilized, but this is really intended exclusively for those three data centers. Okay. And we, it would be a Novak facility,

[04:24:32] obviously off the Dominion line that you can see reflected there, that is a confluence of these regional facilities leading to mars in the upper right okay and i didn't excuse me obviously it's showing obviously like you noted um a little bit back ways from the from the road i would admit yes it's not in the high visible area from where you're proposing but what is your your design look like um and i'm assuming have you been paying attention to the to the conversations that have been going on regarding design for for these things yes sir absolutely of course uh there's

[04:25:09] There's a 12-foot concrete prefab wall around the totality of that substation. Honestly, even if it wasn't there, you wouldn't be able to see it from Old Ox. The only way you'd be able to see it is if you were under those transmission lines that you asked about earlier, or on the airport property, which they probably wouldn't like.

[04:25:27] Nevertheless, we're doing a 12-foot wall around the totality of that site, and you won't be able to see anything on the ground of that substation going up and down Old Ox. You might, and I stress might, able to see the tippy top of some of our poles which are much shorter than that transmission line which i don't know why my pointer is not working when you can because i don't i don't think i saw it but can you send us a illustrative of your um of your design please for your substation it's an illustrative yes sir can you send us the illustratives for it the designs can you send them the you send pictures yes do i have pictures yes can you

[04:26:04] send those to us i apologize i don't know why this is out of order so bear with me because i i don't know where it is now, but we'll get to the elevation of the data centers, and I've got one of the substation wall as well. I think it's going the wrong way. No.

[04:26:23] That's fine. You can email it to us afterwards. I'm not going to. I'm getting right to it. I don't know why. Try to get us out of here a little before 11 o'clock, hopefully. There's the substation. Sorry, sir. There's both the elevation of the data center, and there's the substation wall.

[04:26:41] I've got a better elevation of the front of the data center, But we understand and we follow very closely the deliberations of this board, as you know. There you go. Thank you. Thank you. Well, first of all, he asked the question I was going to ask, so just fine.

[04:26:57] No, it's good. It's fine. I mean, this is not a reliability substation, correct? Correct. Okay. Thank you. Anybody else have any other questions? I think we have one speaker on this item, and that is Clement Lupton.

[04:27:17] He is still here. Would you come up, please, and offer your comments? Hello, sir. Hi, Chair Wren, I registered for the Golden Substation.

[04:27:34] Oh, well, you will, okay, then I'll call you in a little while then. Okay. Okay, sorry about that. Well, actually, no, you're, we can make that change, that's not a problem. Supervisors, the attorney, would you like to make a motion? Yeah, green sheet for everybody following along.

[04:27:51] First on the commission permit, I will move to suspend the rules. Motion is made to suspend the rules. Motion is made and second is to suspend the rules. Yeah, just by clarification with staff, I believe the action date for the board on the commission permit is prior to our next hearing, correct?

[04:28:10] Or meeting? Correct. It would fall after the most upcoming business meeting next week, but before the public hearing. That's correct. All right. So moving. Rule suspension on the commission permit only. This is just a discussion on the rules. Submission on the rules.

[04:28:26] Any discussion? I'll be able to say aye. Aye. Any opposed? That motion will pass 8-0-1 with Ms. Frickman off to Deus. Oh, I'm sorry, I didn't see she was gone. 7-0-2. Okay. And then I move the Board of Supervisors ratify LEGIE 2025-0007, Tech Park at Dulles Substation, Commission Permit 2025-0002, subject to the Commission Permit Platt, dated June 29, 2026, and based on the findings for approval provided as attachments 1 and 3 to July 15, 2026, Board of Supervisors, Public Hearing Staff report.

[04:28:59] I further move the Board of Supervisors forward. Leji 2025-0007 Tech Park at Dulles substation. Special exception 2025-016. And special exception 2025-020 to the September 15, 2026 Board of Supervisors business meeting for action.

[04:29:16] Okay, Mr. Sainz seconded. Mr. LaTourne, I'm going to ask that you split these motions. Sure. So can we do the first part first of the commission permit? And Mr. Sainz will second that. So this discussion will be in the permission permit. So, discussion on the commission permit, Mr. Letourneau?

[04:29:32] Yeah, the commission permit narrow grounds for the board to consider and will be deemed approved if the board does not act anyway prior to the next meeting. So, after consulting with the county attorney, the motion is to approve.

[04:29:49] Okay. All right. Anybody else on the commission permit? All right. Unfit, please say aye. Aye. Any opposed? That motion will pass 8-0-1, and then the second motion is the legy item. Mr. Sanger, still going to second that item?

[04:30:06] Sure. Okay. Discussion on that? Yeah, this is to allow the board to consider the lane use on a different timeline around the substation. So this would forward that lane use decision to the September 15th meeting. Great. Anybody else on this one?

[04:30:25] All right. All people say aye. Aye. I am going to oppose. So that motion will pass 7-1-1 with I'm opposing and Ms. Brixman's off the dais. Thank you very much, sir. All right. Golden to Mars. Come on down.

[04:30:47] Thank you. Good evening. Good evening.

[04:31:21] Good evening. My name is Christian Molinato with the Department of Planning and Zoning here to present the application for a golden substation. The subject property is located east of Pacific Boulevard, west of Route 28 and north of the W&OD Trail in the suburban mixed-use place type and the Sterling Election District.

[04:31:39] The proposal is on the periphery of the suburban mixed-use place type. The applicant is proposing a commission permit and special exception to permit a utility substation in the IP zoning district, a special exception to reduce the minimum required parking from 30 parking spaces to one, and a minor special exception to modify the required type C buffer along the north, east, south, and west property boundaries.

[04:32:05] The proposal includes a gas-insulated substation consisting of four GIS buildings enclosed by a 20-foot-tall screen wall located directly south of planned data center development. Additionally, the proposed modifications to the required Type-C buffer, as shown as letters A, B, C, and D on the graphic shown, show the Type-C buffer being eliminated along the north side and reductions to buffer width and plant unit requirements on all other sides.

[04:32:37] The applicant has committed to provide a decorative 10-foot-tall supplemental screen fence along the W&OD Trail and Route 28, outside of and in addition to the proposed 20-foot-tall screen wall enclosure, and 1,048 supplemental plant units along the southern property boundary adjacent to the W&OD Trail.

[04:33:00] Renderings of these features are also provided as attachment 2A in the Supplemental Staff Report. County policies support the co-location and construction of electrical infrastructure along transmission corridors. County policies further anticipate development on the periphery of place types to transition appropriately and blend with the surrounding environment with additional design considerations on electrical infrastructure.

[04:33:26] The proposal is proximate to existing and improved electrical infrastructure, planned data center to the north and existing data center to the west and the W&OD trail and commercial uses to the south. Staff continues to identify an issue for board consideration related to land use.

[04:33:46] Utility substations are not anticipated uses in the suburban mixed-use place type and are encouraged to use design techniques to minimize visual impacts adjacent to major roadways. The proposal commits to the 20-foot-tall screen wall around the entirety of the substation, the decorative 10-foot wall, excuse me, 10-foot-tall screening fence along the trail and Route 28, and supplemental plantings along the trail.

[04:34:10] Staff raises for board consideration whether the proposed screening along the trail, Route 28, and Pacific Boulevard is consistent with the 2019 general plan. Staff recommends conditions requiring the applicant provide pollinator habitat, screening of the use, and supplemental plantings along the trail.

[04:34:29] Staff could support board ratification of the commission permit and approval of the special exception and minor special exception applications subject to the conditions. Staff is happy to answer any questions. Thank you. Mr. Sainz, this is your district. I'll go to you first.

[04:34:45] Thank you, Madam Chair. What is the acreage size for this site? Approximately 15.8. 15.8 acres, okay. And would you describe the current conditions of the site, full of trees, not full of vegetation, or how would you describe the current site?

[04:35:04] There is some dense tree stand in addition to various open spaces. All right. And the applicant has proposed to do some planting of new trees. Is that correct? That's correct. How long would you say it would take for those new trees to grow and mature?

[04:35:22] Not knowing these specific species, I wouldn't be able to give you an estimate. However, I would defer to the renderings provided as the attachment in the supplemental. I'm going to take a guess. Like, if you're planting new trees and vegetation, how long do you think it normally takes? Typically, the renderings show five to ten years, so I would say maybe five.

[04:35:40] Okay. All right. And this is, well, no, that's all I have for staff. Thank you. Thank you. Anybody else for staff? Okay. We're ready. How are you all doing? Good to see you.

[04:36:00] Good evening. Nice to see you. Did you say good morning? I said good evening. Oh, okay. I was going to say. Not quite yet. We are ready. You can stay there or stand up. Either way is fine with us. Thank you so much. Board, good evening. I want to take a moment to cover the importance of the project before we covered the specifics of our application. As you've heard me say before, a vote to approve this substation is a vote for reliability for Loudoun County, for Northern Virginia, and the entire Commonwealth. We take seriously our mission to provide reliable,

[04:36:36] dependable, and affordable power to our customers. It is an essential service that enables our modern quality of life. However, the fact of the matter is, the grid is under stress. The strain on grid assets is increasing, operating margins are getting narrower, and more emergency actions are required during periods of high demand or unexpected equipment issues. The good news is we know what to do. The only solution to this challenge is to continue building the critical transmission and generation infrastructure that we know is needed to reliably serve our customers' growing needs in the most affordable way possible. Transmission is foundational, not elective.

[04:37:14] But we can't meet this challenge alone. We need decisive action now through continued partnership and bold decision-making by localities, legislators, and regulators to make it happen. Reliability is a shared responsibility. Whatever the drivers may be, addressing aging infrastructure, building out the grid for changing generation resources, or serving increasing load growth, be it residential expansion in Chesterfield County, advanced pharmaceutical manufacturing in Goochland County, Microns expansion in Manassas, or data center growth from Loudoun down to Mecklenburg and everywhere in between. Our obligation is to power our customers every day.

[04:37:53] The Golden Substation is critically needed, as Aspen is. The need and in-service date of June 2028 has been adjudicated by the SEC and upheld by the Virginia Supreme Court. The challenge we have before us is that due to permitting delays, this project is already six to 12 months behind schedule. Time is of the essence. Just three weeks ago, our field crews from Leesburg and Warrington worked three nights straight through the weekend, pulling 18-hour shifts to resolve equipment issues in and around our Ashburn substation to assure things were back in service

[04:38:32] by 9 a.m. each morning to avoid load shed. And just a few days later, heading into the July 4th weekend we experienced record heat and record loads on the system. We narrowly missed major issues and avoided switching data centers to their backup generation because of the investments we have made in the grid, dedicated field crews, smart operators in our system operations center, and a little bit of luck. While the grid performed reliably, we cannot become complacent. We are riding in the margins. Our ability to serve customers during periods of high demand is built on years of

[04:39:09] planning and execution of major infrastructure projects the transmission lines substations generation resources and in grid enhancements that support reliable reliability during events like these require several years to plan and build underscoring the importance of long-term investment and

preparation well before extreme weather arrives and here we sit again in the midst of another hot weather alert issued by PJM and the initial stages of emergency action Vice Chair Turner, in May, when you paused reviews and the board voted for the motion to establish the community working group, you said it was always about reliability.

[04:39:45] And you are right. Whatever the technical criteria our engineers are trying to meet, it can always be best summed up in that one word, reliability. I appreciate the pressure you are all under. Reliability is a single word that comes with a lot of complexity, and I don't mean from an engineering perspective.

[04:40:03] It certainly feels whatever decision is made is done with the numbers stacked against you. But reliability is a 0 to 100 issue. No one wants their lights off or for data centers to run their backup generation. Board, my whole job and that of my team's is to ensure we represent the public's input into project planning.

[04:40:24] Yes, we will disagree on some things, but our projects try to represent a balance of perspectives. Our application tonight reaches that balance and meets the land use criteria to vote for approval. Jack.

[04:40:41] So you've already heard where, sorry, Jack's story with DuBerry, applicants representative. You've already heard where the site is located, the place type. The one thing that wasn't mentioned is there are existing transmission lines that this is next to, but there are also the two routes obviously that you're aware of with the reliability.

[04:40:59] So there's the Aspen to Golden line that you see coming in and then also the Mars to Golden. So this is the nexus, this is where it all meets. And so it is co-located with the existing, but also the planned routes that were approved by the SEC.

[04:41:15] And some of those design considerations, Greg will speak to. Sure. So design considerations for a substation like this are space constraints, which is why we're using GIS, SEC approved overhead configuration, which is why it's an overhead substation, number of transmission circuits in and out of that substation, alignment of transmission circuits in and out of that substation, extra high voltage substation and the engineering constraints related to that 500 kV station, security requirements, proximity to WNOD trail, and zoning and place type. The timeline as

[04:41:54] we've talked about before has been in the process for over a year and at every term we've met conditions with staff and with the Planning Commission last week. We held two open houses in June, and we passed down to the PC last week.

[04:42:12] In addition, in May, as you all recall, the board approved Vice Chair Turner's motion to create the working group, which was the facility to build consensus around aesthetics for three substations, Aspen, Barrister, and Golden.

[04:42:28] We met four times in June while the motion asked for two, and we continue to meet. We reached consensus on design enhancements for those three substations, and we committed to continuing meeting regularly and working for phase two updates to substation aesthetics with staff in line with the comp plan review.

[04:42:49] Again, we held two open houses, one virtual and one open house. While they were lightly attended, they were great opportunities to learn from the community, and we received no meaningful input that would change the aesthetics that we presented.

[04:43:05] In fact, many of the times we've talked about grid planning, some aesthetics related to the substation, but overall positive aspects on the presentation for those meetings. So coming out of that public input session and going before the Planning Commission and also working with staff, we've enhanced the screening and the buffering around the substation.

[04:43:29] And so the application that you're going to see tonight does show the progress of where we've been since we initially brought this to staff over a year ago. You also see that the substation wall and the screen fence, we presented different options to try to enhance the aesthetic over what we had previously done.

[04:43:47] And then there's been some additional coordination with Nova Parks to provide planting along the WNOD trail that would be offsite, but it would be closer to the trail. So that additional planning, you heard about the buffer modifications, particularly on the northern buffer between us and the Future Data Center, where we were eliminating the planning there or requesting to eliminate it.

[04:44:07] We have since amended our application to put all that plant material on the opposite side between the substation and the W&OD trail. So all of those plant units that would have been between us and the data center are now providing additional buffering between the proposed use and the W&OD trail.

[04:44:25] All the areas in that light yellow along the W&OD trail where there will be overhead transmission lines and then along 28 we are putting native pollinator planting in there that's part of our open space that's over two acres worth of pollinator plants that are going to be added to that area.

[04:44:42] We've also put a decorative fence element that helps break up the the linear nature of just the substation wall that's going to go along the WNOD trail and that area you see that's in purple and then also along 28 and then the precast wall does go around the entire substation it's a minimum 20 feet tall. We have presented different options through the public input process and the general consensus was that a two-tone wall, a darker color, a darker green on the bottom, helps blend in with the buffer and the landscape that's around there and then a lighter buff color on the top. And then we have a couple of visualizations and I know I only have a minute

[04:45:21] left so I'll quickly scroll through those. This is along 28 that shows the wall with the screen element and the plants at the initial planting and then this is a 10-year growth and the plant material shown kind of obscures a good portion of those screen fences. And then this view is a simulation along the WNOD trail. You can see the meadow area with the screen fence in it and then the buffer behind that. And then in our coordination with Nova Parks, again this is off-site, it's along the WNOD trail, but we are in coordination with them to plant similar to the way we did on

[04:45:58] Aspen along the W&OD trail. And since that's so close to the user, that would help us obscure the view into the substation. That's this rendering here. And with that, I think my time's up. But we'd be happy to answer any questions. Thank you. Excuse me. I'm sorry. Thank you. And again, this is Mr. Sainz's district. I'll go to you first. Thank you, Madam Chair. Before I get to my questions, I'd like to, on the record in public, apologize to Greg and his team for some of my, I guess I'll just say not-so-nice words on Monday evening when we're in the Rock Ridge Theater.

[04:46:35] So I'll publicly apologize to you guys for that. So I hope you accept. So thank you. All right, thank you for being here, doing the presentation. As we have discussed in person and also in email, I feel there still is some work to be done regarding the visit,

[04:46:57] You know, for making sure that this is a well-designed substation that will, and I think we can do some more work to help with the visualization, because this is, I think we all can agree, this is in a high traffic area from Route 28, and then definitely this stretch of the WOD Trail, because they're coming from Leesburg or Ashburn and heading east to Sterling, Herndon, and Reston, and so on.

[04:47:24] A lot of people use that and same thing if you're coming from Reston and Herndon, Sterling going towards Ashburn and Leesburg, everybody passes this stretch. And I think we all can agree because there's a bridge. This bridge is pretty high so you're going to be looking down on the site and there's a hill also so you'll be seeing a lot of the substation and the trail is right there next to this site.

[04:47:51] So I did some research and found a substation that was in Minneapolis, Minnesota, that's on a similar trail. There is a bridge there as well. Granted, that bridge is not as high as this bridge.

[04:48:08] But however, there is a design that was done that I think is something that we should truly look at. And I sent that to the applicants this morning at approximately 9 a.m. And I got a response back at 2 o'clock from them.

[04:48:27] Just yes or no, do you feel that five hours is enough time to review what I sent and come to the conclusion that you possibly could not do what I'm asking you to look at? With all due respect, it is a design that has been forwarded to us before and that we talked through during the working group.

[04:48:47] We explained that since the approved transmission line is in an overhead configuration and that substation in Minneapolis is an underground transmission line that a lot of the aesthetics applied there cannot be applied here. With our security criteria and the fact that those poles are already fabricated and it's an overhead configuration, that everything would be able to be moved up.

[04:49:15] So those poles that are about 100 feet tall would move up in degree for every inch or foot that you put up against the 20-foot wall. Since those poles are almost prefabricated, we would have to probably delay putting this in service by a year if we had to reorder poles.

[04:49:34] So that was a conversation we've had over the last month. It was not just today's response. You will have more time in the opening and closing of a motion if you'd like to have more time. Mr. Letourneau. All right, so I know what Mr. Sainz's concerns are, which are really the visibility around the trail.

[04:49:55] I guess my question is, are we, so what you're kind of saying is going to be very difficult to screen the actual substation when we're talking about the substation. But are we kind of looking at this narrowly, and could there be screening on the trail itself?

[04:50:11] I know you would probably need an easement from Nova Parks, but what could we do to potentially along the trail screen so that you're not looking down on the substation that may not interfere with the integrity of the substation? You know what I'm saying? Yes, for sure. And hearing that comment back from Monday, in addition to getting some more information from Nova Parks, which allowed us to create this photo sim, which those plantings would be on Nova Parks' property, We also have now engaged

VDOT for the overpass because we would need a permit from them if we wanted to somehow screen that fencing that's already on the overpass.

[04:50:48] That design obviously hasn't been figured out and we would have to coordinate with VDOT to make sure that we're meeting their safety standards. But coordination with Nova Parks as well as VDOT would be possible and they said that they would have those conversations with us. - Okay, talk to us a little bit about the timeline.

[04:51:06] So I get the urgency. I think the commission permit actually is, I think the deadline for the board is what? September. So as long as we act within that time frame, are we where we need to be? To a certain extent, I mean, we're already delayed six to 12 months, right?

[04:51:27] And so the time is of the essence and every time, every day. But could we get to a point where we get the VDOT conversations, Nova Parks, all that done in like the next three or four weeks? And so we have a package in front of us, September 1, we could move on. Well, I think I'd have to ask your counsel, but the coordination with VDOT is off-site, and that's a commitment that we can commit to right now to work through.

[04:51:55] We have some sway there, too. So that's a commitment that we can make. Again, not knowing what the conditions would be from VDOT itself, but that's a commitment that we can make. Yeah, there's always language about pursuing to the maximum extent possible those kind of things as well that we can work through.

[04:52:11] So, okay. I wonder if that just might be a way forward here to try to get at what Sir Brother Sains is trying to solve for, which I agree with him on, and get us to where we need to be here. Mr. Crony. Thank you, Chair Randall.

[04:52:28] So you are putting four GIS buildings in this substation. Can you describe, because I don't think we've ever had something like this before. It's described as an extra high voltage. substations? So maybe if you can give a little more information. Sure. So extra high voltage in our nomenclature is anything above 325 kilovolts. And so substations like Wishing Star, Mars, Aspen, Golden, since they're at the 500 kV level, is just a nomenclature in the

[04:53:02] industry of extra high voltage. The reason why we have that amount of GIS stations is because of the number of the 500 line that's coming in and going out, as well as the 230 inner ties that will happen at that station as well.

[04:53:20] You need four. So is this the only substation that you have that has four of these buildings? I don't think I've ever seen anything with four. I'm trying to count. I mean, we have a number of GIS stations outside of Loudoun that may have similar.

[04:53:37] But this is the only one, you think? In Loudoun right now? Yes. In London right now? Okay. No, yes. Interesting. Okay, thank you. And then the reduction in the 25 feet required for the type C buffer, I understand why you don't want anything in the north, and I'm glad you moved all the plantings to the W and OD.

[04:54:03] But I'm wondering why you needed a reduction in those other south, east, and west, along Route 28, the W and OD, and Pacific Boulevard. That's actually a recent zoning determination so this application and pretty much all the applications going back to at least 2000, 2001 even under the old

zoning ordinance required a road quarter buffer anytime you're up adjacent to a road or in this case the WNOD also is part of the road quarter buffer application and so that type C would not be applicable on those frontages

[04:54:39] And we had moved through the application with staff up until the second planning commission hearing and the determination came out. So we had to either go back to the beginning and redesign the entire substation or ask for a modification to make the buffers compatible with the type C.

[04:54:57] So we had to ask for a modification. So what were you thinking you had before? We had road quarter buffers. So there were different, there was a two type two road quarter buffers and a type three road quarter buffer based on the zoning determination at the time. Okay, which has less width and less plant units.

[04:55:16] So we actually have more plants in this application than we did when we went to the PC the first time. However, the application has expanded in scope to account for the new determination. Okay, thank you. Mr. Kirshner.

[04:55:32] Thank you, Madam Chair. Just a couple of questions. several potentially competing motions on when we move this, whether we move it to next week. Current package says September 1, and I think there might be a motion to move it October 1st. In terms of reliability, will that make any difference in terms of where we move it or not? Will we be shedding load as a result of delaying it further? Will we potentially be running backup generators if the further out we move it? I mean, can you speak to that?

[04:56:02] Sure. I think the potential increases with every day that this substation and the transmission line is not in service. As I communicated to you leading up to the 4th of July weekend, we were minutes away from turning every data center in Ashburn to their backup generation.

[04:56:23] And literally it was by luck or by great skill from PJM operators or our operators, we avoided that. We know that this is urgently needed. We're already six months behind, 12 months behind in some instances if we can't get the construction moving on the right timeline.

[04:56:41] And so I hesitate to say any certainties, but the risk certainly heightens. And if we're living in the margins today, that only expands year over year.

[04:56:56] And I'm assuming heat has a lot to do just because of everything that's running in the heat, correct? Well, you know, up until about a week ago, our peak was in February because of the cold. Because of the cold. And now we are now set all of our nine highest temperatures in the last six to 12 months.

[04:57:17] And from the moment we approve this until it's up and operational, how much time will that take? We're anticipating right now that there's a chance that we can get it operational by the end of 2028, But that may slip into mid-2029, again, depending on resources, time of year, mobilizing during the winter.

[04:57:37] So there's some variables, but we're committed to trying to get that gap as narrow as possible, and that's why time is of the essence right now. All right, thank you. Thank you. Ms. Um, did you turn your light off? Madam Chair, Supervisor Gershner asked a question.

[04:57:53] Wonderful, wonderful. I don't have a question. I have a comment. Oh, I'm sorry, I didn't see your light. Mr. Turner. So this depiction you have up there now, is this the most recent proffer that you guys have made, full growth foliage in the buffer?

[04:58:09] Yes, this is the coordination we've been working on with Nova Parks. They have some underground utilities, and so we didn't know where that was. So we couldn't make a rendering until this morning or yesterday. And so we got this this morning from our consultant.

[04:58:25] And then can you commit tonight that if Nova Parks gives you permission to screen the W&O-D that you will screen the W&O-D with whatever they allow you to do? In this location or on the overpass? On the overpass. In coordination with VDOT, we can make that commitment.

[04:58:44] Okay. Thank you. So I wasn't at the first transmission meeting, the electric transmission meeting, but I was at the second. So you just said to Mr. Sains that the discussion about that particular substation and that design was discussed.

[04:59:02] It must have been discussed in the meeting I was not at because I would have, that was such a unique design. I would have remembered at least that picture in that discussion. So I'm going to make the assumption that that discussion happened when I was not there.

[04:59:19] That's the assumption I'm going to make. Okay. We have about five speakers on this item. I'm going to call Clement Lupton first, and then I'm going to go to -- I'm going to -- hopefully I do not mispronounce your name, and if I do, I apologize, and when you come forward, please pronounce it for me -- Ganesh Subamanyam and Pladeep Gobala.

[04:59:48] Hello, Mr. Lupton. How are you? Good. How are you? Well, thank you. Good evening, Chair Randall and members of the board. I'm Clement Lupton, Government Relations Manager for the Loudoun County Chamber of Commerce, and I'm here tonight on behalf of the Chamber to support the Golden Substation application.

[05:00:06] Golden Substation is a critical connection in Dominion's Loudoun Reliability Loop, which includes the 500-230 kV overhead transmission lines from Aspen to Golden and Golden to Mars. The Aspen and Golden Substations are critical, completing a chain of infrastructure that our region depends on to keep pace with growth.

[05:00:26] As Loudoun continues to add homes and businesses, electricity demand will only increase, and our grid has to be built to carry that load reliably, not just today, but for decades to come. Delays in bringing projects like this online put real strain on the broader system and can ripple into higher costs and greater reliability risk for everyone who depends on it.

[05:00:47] We appreciate Dominion Energy's continued efforts to engage residents, property owners, and local officials on design and siting solutions that reduce the impact of projects like this on local communities. Dependable power is inseparable from economic competitiveness, and further delay only postpones a need that isn't going away. For these reasons, we urge the board to approve the Golden Substation application tonight, and thank you for your consideration. Thank you. Thank you so much, Mr. Lepton. Ganesh Subramanyam, followed by Pradeep Gubala. Please tell me if I said your name correctly. Good evening.

[05:01:24] Good evening. My name is Ganesh Subramaniam. It's a one mile long South Indian name. You know that. And I'm very much here to talk about supporting the Golden Substation. I'm an electrical engineer by academics, but most of the time I'm working on the hardware side of data centers and those kind of activities. I'm here to support this substation project because I know this This proposal is located in the areas of people care about, including the W&WD Trail, and

[05:02:03] I understand why the residents, they want the county supervisors to take a closer look at the screening, landscaping, and the visual impacts. As you know very well, Loudoun County had a tremendous amount of growth in the last 15-20 years.

[05:02:21] We have been living in Loudoun County from 1997, and we have gone through exponential growth of properties, subdivisions, building everywhere all over the place. And with this kind of a heavy-duty demand and with all the data centers that we have in the data center headquarters of the world, it's highly essential that we look into this and make sure that this goes as a successful project so that we do not run into any of the outages and stuff like that.

[05:02:54] You know, it's very easy to talk about, you know, I want to have consistent power all the time, but it is quite a challenge being, when you look at it from an electrical engineering perspective, it's quite a challenge. From that perspective, I would request and ask the Board of Supervisors to look into that and approve this particular project, and which will help the entire community all over the Northern Virginia in the Loudoun Corridor.

[05:03:22] Thank you very much. Thank you very much. Good evening, sir. Good evening, everyone. My name is Pradeep Gubbala, and I live in Loudoun County at Brambleton. Thank you for the opportunity to speak tonight.

[05:03:39] I am here to support the Golden Substitution Project. I know this proposal is located in an area people care about, including near the WNOD trail. And I understand why residents want the county to pay close attention to screening.

[05:03:56] landscaping, and visual impacts. At the same time, I think it is important to recognize why this type of infrastructure is needed. Northern Virginia and Loudoun County continue to place more demand on the electric system and substations are a basic part of keeping power reliable for homes, businesses, schools, and public services. Reliable electricity is easy to take for granted until there is an outage or disruption. As our community grows,

[05:04:32] we need to make sure the grid can support that growth safely and consistently. I also appreciate that the planning commission and county staff have focused on additional vegetation and screening around the site. Those details matter near public spaces and major roadways. With these appropriate conditions to reduce visual impacts. I believe this project is a reasonable and necessary investment. I respectfully ask the board to support the Golden Substitution Project and

[05:05:07] allow this important infrastructure to proceed. Thank you. Thank you. Sir, it says now that you are the Virginia Asian Chamber of Commerce. Are you representing the Virginia Asian Chamber of Commerce or are you representing yourself? Yeah, I am representing myself. You're representing Okay, thank you very much. Appreciate it. And our last speaker is Victor Bloch. Good evening, sir.

[05:05:44] Hey, good evening. How are y'all? I want to acknowledge that Dominion has been working with the community and the working group. They held open houses. They made improvements to the design. The renderings show an improved outcome for the Golden Substation. If you haven't been there recently, we wanted to share some photos of the Mars Substation.

[05:06:01] We've made a lot of progress from these, and this is better, but these are from real life and not renderings. While these renderings are better than what we had before, and we appreciate that Dominion is working with us to try to do better, we have to think about what the end result really is going to be like.

You put up 20-foot walls, you add screening, and what you end up is a prison yard with the transmission structures coming out the top.

[05:06:25] There's got to be a better way to do this. Dominion paid over \$90 million for just 15 acres of land to build this substation. The beneficiaries of this power should help make this better. We, the residents, shouldn't have to pay for it. We're already paying for it. Trust me. Let's ask them all to be accountable. They're doing a little better. We're all getting a little better at this. We need to do more. We're not denying the need, and we have never asked to deny this substation. And we didn't want to flood the meeting and make this any later tonight, especially for your flight tomorrow. But we still need to take the

[05:07:03] time and get this right. Thank you. We're all getting a little better with this. Thank you for saying that okay all right thank you i don't think there was any more i didn't see any more we have one more do i have one more you have one on the uh telephone i do electronic we do have one on the phone yes we do i'm i i um reha um um shashida i think so i hope so good evening good evening my name is raja sheker shashida and i'm a resident of london county for over 26 years Thank you for the opportunity to speak tonight.

[05:07:44] I'm speaking in support of the Golden Substitution Project. Having lived in Loudoun County for over two decades, I have witnessed firsthand the tremendous growth our county has experienced. We have seen new neighborhoods, schools, businesses, and community amenities emerge across the region.

[05:08:01] With that growth has come an increasing demand for reliable infrastructure, including the electrical systems that power our homes, workplaces, and public services. I understand that residents have concerns about the location of this project, particularly given its proximity to valued community assets such as the W&OD trail.

[05:08:22] Those concerns are valid, and I appreciate the attention that has been given to landscaping, screening, and minimizing visual impacts. At the same time, it is important to recognize that substations are a critical part of maintaining a dependable electric grid.

[05:08:39] As Loudoun County continues to grow, we must ensure that our infrastructure keeps pace with the needs of residents and businesses. Reliable electricity is essential to our daily lives, and investments like this help ensure that power remains available safely and consistently for years to come.

[05:08:58] I also appreciate the efforts of the county staff and the Planning Commission to incorporate additional buffering, vegetation, and screening around the site. These measures have helped balance community concerns while allowing important infrastructure improvements to move forward.

[05:09:16] Based on the county's continued growth and the increasing demand of our electrical system that I have observed over the last 26 years, I believe the Golden Substitution Project is both a necessary and responsible investment in Loudoun County's future.

[05:09:33] I respectfully ask the board to support this project and allow it to proceed. thank you for your time and consideration thank you sir thank you okay um i don't think there's any other speakers and so i'm going to go to mr saints for a motion thank you madam chair i move that the board of supervisors for leji dash 2025 dash 0012 golden substation cmpt commission permit dash 2025 dash 0005 to the september 1st 2026 board of supervisors business meeting for action

[05:10:05] I further move that the Board of Supervisors forward led you to 2025-0012 Golden Substation Special Exception-2025-0032 Special Exception-2025-0033 and Special Exception-2025-01372 the October 6, 2026 Board of Supervisors Business Meeting for Action.

[05:10:27] I will, in support of my colleague and for the purpose of the discussion, second the motion. Madam Chair, I have an amendment to the motion. You have an amendment to the motion. Okay, okay.

[05:10:45] I move that. Wait, let me give him an opening first, okay? And then I'll come right back to you. Would you like an opening? Thank you, Madam Chair. And I'll correct the record. This is the first of the Minneapolis station, substation that I sent today was the first time you're seeing it. I sent other substations and other locations in Tysons, Dublin, Frankert, Rio, Ciclon Valley, and Dallas.

[05:11:07] not this one. So unless somebody else showed you this one, this is the first time you saw it today. As was mentioned, yes, Dominion has done some work and approved the substation from the original design that was first proposed. Good. Thank you. However, we can do better. Even in your own words today, when you responded back to me, I do not have an answer for you yet on the metal fencing.

[05:11:34] The focus through staff review, which was more than a year, was on decorative security walls, not metal fencing, which is why the concentration has been on that treatment. So even in your own words, you truly have not even looked at this idea.

[05:11:50] That's why I'm proposing to move this item to October to give Dominion, county staff, and us more time to review this. Yes, this is a reliability issue, but at the same time, we still need to do our work. Dominion needs to do their work to provide a good product to our residents and our community.

[05:12:10] I mean, let's be honest, we all can agree, no construction is going to be 100% perfect on time. There's going to be delays. There's going to be paperwork delays. Even if we approve this tonight, they're not going to move dirt starting tomorrow. And the original application was moved this to September.

[05:12:28] So all I'm doing is adding a few more days onto this so Dominion can do some more research and really truly look at this. Dominion is one of the biggest energy countries, energy companies in our region, in the Atlantic, East Coast, probably on this side of Mississippi.

[05:12:49] So I'm pretty sure they can do this. Just as Chair Randall says, we do hard things. Yes, this is a hard thing, but I think you guys can do it. So that's why I'm glad I found this design. And again, it's shown it's on a substation. This can be done.

[05:13:08] Just how it was able to be done to get designs for the screening wall with different colors and the other security walls that we never seen before, somehow that was able to get done. This can get done just the same. So hopefully I can have my colleagues' support on this and so we can give a good product for our community.

[05:13:29] Thank you. Thank you. Mr. Turner? Thank you, Madam Chair. I move we amend the motion to change both dates in the motion to July 21st, 2026. Mr. Turner, I'm not going to accept that motion. He didn't, that wasn't a friendly, that wasn't a friendly, oh, that wasn't a friendly, and I'm going to, I do not believe that you can, that is just an amended motion, I believe that that's actually, no, I believe it's, I need to finish my thought, without all the

[05:14:08] men on this day is, except for Matt, thank you Matt, telling me, telling me stuff right now. Thank you very much. I think it's in contradiction to the motion on the table. That's what I believe. I think

it's in contradiction to the motion on the table. I'm going to let the motion on the table be complete, and if that does not pass, then you can make another motion if the one on the table does not pass. How is it a contradiction?

[05:14:32] Well, because it's literally the opposite of what he wants. No, it just changes the date, Madam Chair. It's not precisely what he wants. Precisely what he wants is these dates. So isn't that true of any amendment to any motion, what you just said?

[05:14:49] No. No, it's not. But what is true is this is the call of the chair with respect, and that's the call I'm going to make. Mr. Letourneau, would you like to speak to Mr. Sains' motion? Okay.

[05:15:05] I'm in between my colleagues here, and I'll tell you why. I would like to have until September, but I would want September 1, September 1. And I will say, if we get to September 1 and this isn't where we need to be, we could always extend it another 30 days or another meeting or whatever.

[05:15:25] But I don't want to start out by saying we have to go to October. I'd like to try to get this done over the August recess for September 1. So that's where I'm at. I think we should just go in and take this vote first. I agree, but I'm speaking on this motion, so I'm explaining that I'm not going to support the motion as Mr. Sainz made it.

[05:15:45] However, I'm laying out for Mr. Sainz and others what I would support. What's coming next. Okay, I understand. Thank you. Mr. Kirshner? Madam Chair, I was going to say the exact same thing Mr. Letourneau said. Would Mr. Sainz accept a friendly to change the second part of his motion to September 1 in line with what Mr. Letourneau said so that we don't have to go through this process again?

[05:16:05] Just make it September 1 and move it up. He's counting dates. I'm sorry. No, counting dates. Hold on. Let's go to... Where is... Dun, dun, dun, dun, dun, dun. I'm trying to use this new thing.

[05:16:21] It's very different being up here. Is it having the new documents in here? No. No. Where's the original motion? What's happening right now is Mr. Kirsten has made a request for a friendly to change both dates to September 1st, and Mr. Sainz and I would have to accept that friendly.

[05:16:43] Yes. That's what's happening right now. And I think Mr. Sains is looking at how many, looking at dates literally. September 1 for both. And I am not, well, this is Mr. Kirshner's time. Do you want to say anything else in your time?

[05:16:59] I'd just like us to sit here and look at each other while we wait for Mr. Sains. That would be my preference. I think it's a lot of fun that way. Stretch. All right, fine. We'll go to the original motion in the packet, which is September 1. All right, thank you. The original motion, so the friendly was made. You accepted the friendly.

[05:17:16] I second your motion. I will accept the Friendly, so the motion on the table now is September 1, September 1 for both areas. If you have not spoken on the motion yet, would you like to speak on that motion with the Friendly? Mr. Turner, you have something else to say?

[05:17:31] Thank you, Madam Chair. We've been talking in the stakeholders group for a month now with all representatives from the stakeholders, including the community, in that meeting about Aspen Golden Barrister. We just approved Aspen Barrister. The applicant has proffered this growth that you see in the image here, which is, frankly, from what I've seen, the best looking substation I've ever seen. If I understand what Supervisor Sainz is trying to do, I would argue that we are

[05:18:07] sacrificing the good for the perfect. And I think probably if we come back in September 1st, we're going to see exactly the same application. We'll have wasted two months and accomplished exactly nothing. If I thought there was any substantive improvement in this substation that was reasonable after a month of conversation with all the stakeholders in the room about this substation, then I would be happy to defer it. But I don't believe there is. I believe this is an exercise in just spending time, and it doesn't accomplish anything. This is a reliability

[05:18:47] substation that's a year late in getting started, and the community, 25 members of our community, including county staff, have been talking about this and the other two reliability substations for a month. I just don't think there's sufficient substance added to waiting until September to decide what is obviously going to be a yes vote thank you so i would say um today is july 15th september 1st is not two months away so i just want to say that uh secondly i'm a missouri

[05:19:25] secondly i don't know if this is a year late and if it is a year late i don't know that it's this fault that it's a year late um i do appreciate very much as mr block said that dominion has been working. They have been meeting with the community and meeting with us, and that is very, very helpful. And I absolutely want to acknowledge that. I also want to acknowledge that those meetings that we've had, they didn't come without some pushing and forcing and asking. And those

[05:20:02] meetings have resulted in a better product and I think even better understandings. And I do hope that six weeks will not be the moment where things kind of fall apart. Since the commission permit, when's the commission permit's deadline?

[05:20:20] The first, so we're going to meet that deadline anyway. And so I don't imagine there's a whole lot that's going to happen before the commission permit deadline. There was a time that I used to, you know, get really frustrated with Mr. Sains when he would meet with applicants and ask for staff, and I'd be like, stop that, don't do that.

[05:20:38] And I have learned that sometimes, you know, asking for something, it may yield something, and it may not, but he's doing it on behalf of our constituents, his and mine, constituents, and any others.

[05:20:55] And it is possible that the, Mr. Turner, I hear you, you know, the perfect should not be the enemy of the good. At the same time, neither should rushing or going faster than need to something this important be the goal.

[05:21:17] Also, when I did talk to my colleague and he did explain, like, when you're on a bridge and you look down, what you see. I think that's, you know, when he pulled up Google Maps and go over there and look at it, I think it's a good point.

[05:21:33] I think he makes a good point. I have not voted on a reliability substation at all. I fully understand the need and the reason and all the reasons for a reliability substation. And truthfully, once again, you know, Dominion has done a good job explaining things and helping things.

[05:21:52] So it's a reliability substation. I will vote for this. But if past is prologue, the time we've taken in the past on a reliability substation yielded a better product. And if it's possible it could yield a better product this time, I'm going to let that go and see if we can get there.

[05:22:13] Should I get closing? Yes, thank you, Madam Chair. Yeah, again, even if we approve this today, they're not going to be moving any dirt on this until 20, I think, correct me wrong. You said 2028, at least,

right?

[05:22:30] We're mobilizing this fall since we have approvals elsewhere. But 2028 or so is what you said earlier. Anyway, like I said, we've sent one, two, three, four, five, six, now seven real-life cases where substations look way better than what we were producing here.

[05:22:53] So it can be done. Yes, you can say those are not 500 kV lines. Okay, great. You have a whole team of engineers, designers. Let's go to work and design and figure it out.

[05:23:09] The growth, yes, this is good. But again, it's going to take 10 years for that growth to happen after you clear cut all the growth that's been growing there for decades. Just like Chair Randall said what I said to her earlier, when you're on that bridge, you're going to be looking down, seeing the guts of this substation.

[05:23:29] So if they can work with VDOT, if they can work with us to get some more better screening on the bridge or on this wall and add some decorative things on here, why not? And then we have a template for other design, other substations moving forward. And even in your own work, Supervisor Turner, respect you a lot, you delayed those votes, conversations were had, we got better products.

[05:23:55] So why can't we do the same for this one? You delayed a reliability substation for the other one? Got a better design. Why can't we do the same for this one? It's not going to hurt anything not one bit and you know that Respectfully, so I look forward to continuing the conversation with Dominion and we'll see what happens Thank you. Mr. Sainz made the motion. I'm second the motion with a friendly amendment on the motion from mr.

[05:24:25] Letourneau

[05:24:37] I just stole it. You know what I said to you guys backstage about you two, so back there about you two. All right, friendly from Mr. Kirshner. All right, all in favor, please say aye. Aye. Opposed? No. That motion will pass 7-1-1, with Ms. Frickspin being off the dais and Mr. Turner voting against the motion.

[05:25:00] Thank you very much. Ms. Tacroni, would you like to come down here to take the meeting or sit where you're at? I know it. Are you good? Can you do it? You want to come down here? Come down here, girl. Get on this gavel. Mr. Letourneau and Mr.

[05:25:51] Yes, I sent my staff home. I don't blame you. Thank you for doing that. Good evening. All right. Yeah, good evening. All right. So, Supervisor Letourneau pulled this off. Yeah.

[05:26:12] Okay. So, Supervisor Letourneau, would you like a presentation from staff? now? No, I can just go right to the issue. We can go right to the questions? Okay. Um, go ahead. You have a question? So I took this off because of the effective date. When we were discussing this I was assuming that we would make this effective for new applications because that's what we've always done. The item says that after input from industry it has been decided that this is going to be effective for all applications that have not yet reached the

[05:26:49] the Board of Supervisors so not even the Planning Commission so can we change that Megan and pick a different okay what is it truly staffs recommendation that it be items that haven't come to the Board of Supervisors yet or can we make it at least the Planning Commission or it was the staffs initial recommendation to have it be effective similar to how you had suggested and And then once the board or the finance committee discussed this item and put it on pause for

[05:27:24] a few months, we worked with industry and the county attorney's office to discuss our recommendations. And that was one thing that the industry had asked. And we had put that in the board item last month. But the original was for new, like all new applications?

[05:27:41] Correct. Okay. I think my concern with that is now we've put kind of the planning commission in a difficult spot because they've actually acted on applications that include the old CIF. So I would recommend that we change this motion to be either the Planning Commission or simply new applications as of September 1st.

[05:28:05] I can make a motion. Yeah, why don't you make a motion? We need to see if there are any public, any, because we are at a public hearing. It's a public hearing, yeah. Yes. Other questions? Other questions of staff?

[05:28:20] No? Okay. So are there any members of the public wishing to address the board regarding this item? I don't think we have anybody signed up. Okay. Nobody online? Nobody online. Great. All right.

[05:28:36] Wonderful. So we will go to a motion. Superlaternity, you want to make a motion? I like the September 1st. Well, yeah, that's in here, but I will move. Do I need to suspend the rules?

[05:28:51] I think I do, right? No. No? No. I think that sounds like September or a different date. Are we just moving this to September 1? Let's just do that because we're missing colleagues. However, I will say, I will change the language here. So we'll say, I move the Board of Supervisors forward the 2025 standard capital intensity factors, urban multifamily attached capital intensity factors, and the buy size differential option as recommended by staff, along with the age-restricted and continuing care retirement communities capital intensity factors, and the roads capital intensity factors as recommended by the Fiscal Impact Committee, taking effect on the date of adoption and applying

[05:29:27] to all new rezoning applications to the September 1, 2026 Board of Supervisors Business Meeting for Action? Second. Okay. Okay. I think this is opening. This is consistent with our, I think, what has been our historical practice. It's open to discussion with colleagues about it, but I certainly don't think it should be actions that the board hasn't taken yet because we're going to screw up stuff that's already in development. I've already heard from a planning commissioner that they've been having this kind of thrown in their face.

[05:29:59] So that's disruptive. Okay, any comments on, nope? Okay, so Supervisor General made the motion. I seconded, seconded the motion. All those in favor? Aye. Okay, that motion passes. That's for any opposed.

[05:30:15] Any opposed, no. We're all here, so it passes 5-4, 5-0-4. All right. Who's not here? With, okay, with Vice Chair Turner, Chair Randall, Supervisor Glass, Supervisor Briskman, absent off the dais.

[05:30:42] Okay, with no other business, I call the public hearing adjourned. Thank you very much. Thank you. Thank you.



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